AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES

FEDERAL REGISTER

VOLUME 17 NUMBER 178

Washington, Thursday, September 11, 1952

TITLE 6—AGRICULTURAL CREDIT

Chapter IV—Production and Marketing Administration and Commodity Credit Corporation, Department of Agriculture

Subchapter C—Loans, Purchases, and Other Operations

[1952 C. C. C. Cottonseed Bulletin 2, Amdt. 1]

PART 643—OILSEEDS

SUBPART—1952 COTTONSEED PURCHASE PROGRAM

DETERMINATION OF QUANTITY

Section 643.723 of 1952 C. C. C. Cottonseed Bulletin 2 (17 F. R. 4636), issued by Commodity Credit Corporation, is hereby amended by revising the provisions of such section to include the method by which the gross weight of cottonseed purchased from a producer by a participating ginner shall be determined. As revised, § 643.723 reads as follows:

§ 643.723 *Determination of quantity.* The quantity of cottonseed purchased from a producer by CCC shall be the gross weight actually delivered to CCC as determined by the county committee, or by an approved storage facility, or by a participating oil miller. The quantity of cottonseed purchased from a producer by a participating ginner shall be the gross weight of the cottonseed as customarily determined by the ginner in his purchases of cottonseed from producers. The quantity of cottonseed purchased from the ginner by CCC shall be the net weight of the cottonseed at first destination after deduction of the weight of any foreign matter in excess of 1 percent.

(Sec. 4, 62 Stat. 1070, as amended; 15 U. S. C. sup. 714b. Interpret or apply secs. 4, 5, 62 Stat. 1070, as amended, 1072, secs. 301, 401, 63 Stat. 1053, 1054; 15 U. S. C. sup., 714b, 714c, 7 U. S. C. sup., 1447, 1421)

Issued this 8th day of September 1952.

[SEAL] JOHN H. DEAN,
Acting Vice President,
Commodity Credit Corporation.

Approved:

G. F. GEISSLER,
President,
Commodity Credit Corporation.

[F. R. Doc. 52-9950; Filed, Sept. 10, 1952; 8:55 a. m.]

TITLE 16—COMMERCIAL PRACTICES

Chapter I—Federal Trade Commission

[Docket 5573]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

BOOK-OF-THE-MONTH CLUB, INC., ET AL.

Subpart—*Advertising falsely or misleadingly:* § 3.75 *Free goods or services.* Subpart—*Offering unfair, improper and deceptive inducements to purchase or deal:* § 3.1955 *Free goods.* In connection with the offering for sale, sale and distribution of books in commerce, using the word "free", or any other word or words of similar import or meaning, in advertising to designate or describe any book, or other merchandise, which is not in truth and in fact a gift or gratuity or is not given to the recipient thereof without requiring the purchase of other merchandise or requiring the performance of some service inuring, directly or indirectly to the benefit of the respondent; prohibited.

(Sec. 6, 38 Stat. 722; 15 U. S. C. 46. Interprets or applies sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, Book-of-the-Month Club, Inc., et al., New York, N. Y., Docket 5573, May 8, 1952]

In the Matter of Book-of-the-Month Club, Inc., a Corporation; Harry Scherman and Meredith Wood, Individually and as Officers of Book-of-the Month Club, Inc., a Corporation

Pursuant to the provisions of the Federal Trade Commission Act the Federal

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FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the Code of Federal Regulations, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended June 19, 1937.

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Code of Federal Regulations

REVISED BOOKS

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Parts 1–699 ($5.00)

Part 700 to end ($5.25)

Title 32A, containing NPA, OPS, and other regulations under the Defense Production Act together with the amended text of the act and related Executive orders:

Chapter I to end ($6.50)

These books contain the full text of regulations in effect on December 31, 1951

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Trade Commission, on June 30, 1948, issued and subsequently served its complaint in this proceeding upon the respondents, Book-of-the-Month Club, Inc., Harry Scherman, and Meredith Wood, charging them with the use of unfair and deceptive acts and practices in commerce in violation of the provisions of said act. After the issuance of said complaint and the filing of respondents' answer thereto, testimony and other evidence in support of and in opposition to the allegations of the complaint were introduced before a trial examiner of the Commission theretofore duly designated by it, and such testimony and other evidence were duly recorded and filed in the office of the Commission. Thereafter, this proceeding came on for final consideration by the Commission upon the complaint, answer thereto, testimony and other evidence, recommended decision of the trial examiner with exceptions thereto, and briefs and oral argument of counsel; and the Commission, having duly considered the matter and having entered its order disposing of the exceptions to the recommended decision of the trial examiner, and being now fully advised in the premises, finds that this proceeding is in the interest of the public and makes this its findings as to the facts[1] and its conclusion[1] drawn therefrom.

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, answer of the respondents, testimony and other evidence introduced before a trial examiner of the Commission theretofore duly designated by it, recommended decision of the trial examiner with exceptions thereto, and briefs and oral argument of counsel; and the Commission having made its findings as to the facts and conclusion that the respondent Book-of-the-Month Club, Inc., has violated the provisions of the Federal Trade Commission Act:

It is ordered, That the respondent Book-of-the Month Club, Inc., its officers, representatives, agents, and employees, directly or through any corporate or other device, in connection with the offering for sale, sale, and distribution of books in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from: Using the word "free," or any other word or words of similar import or meaning, in advertising to designate or describe any book, or other merchandise, which is not in truth and in fact a gift or gratuity or is not given to the recipient thereof without requiring the purchase of other merchandise or requiring the performance of some service inuring, directly or indirectly, to the benefit of the respondent.

It is further ordered, That the complaint herein be, and the same hereby is, dismissed as to Harry Scherman and Meredith Wood as individuals, but not in their capacity as officers of respondent Book-of-the-Month Club, Inc.

It is further ordered, That respondent Book-of-the-Month Club, Inc., shall, within sixty (60) days after service upon it of this order, file with the Commission a report, in writing, setting forth in detail the manner and form in which it has complied with this order.

Issued: May 8, 1952.

By the Commission, Commissioner Mason dissenting.[1]

[SEAL] D. C. DANIEL, *Secretary.*

[F. R. Doc. 52-9902; Filed, Sept. 10, 1952; 8:45 a. m.]

[Docket 5575]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

GAMBLE-SKOGMO, INC., ET AL.

Subpart—*Coercing and intimidating:* § 3.350 *Customers or prospective customers—To eliminate competitive purchasing;* § 3.360 *Distributors of competitors.* Subpart—*Cutting off competitors' or others' access to customers or market:* § 3.560 *Interfering generally with distributive outlets;* § 3.605 *Withholding supplies or goods from competitors' customers.* Subpart—*Dealing on exclusive and tying basis:* § 3.670 *Dealing on exclusive and tying basis.* Subpart—*Subsidizing business:* § 3.260 *Subsidizing business.* I. In connection with the offering for sale, sale or distribution of merchandise in commerce, as defined in the Clayton Act, (a) selling or making any contract or agreement for the sale of any such products on the condition, agreement or understanding that the purchaser thereof shall not use or deal in or sell the merchandise of a competitor or competitors of corporate respondent; and (b) enforcing or continuing in operation or effect any condition, agreement or understanding in, or in connection with, any existing sales contract which condition, agreement or under-

[1] Filed as part of the original document.

[1] The opinion of the Commission and the dissenting opinion by Mr. Mason are filed as part of the original document.

standing is to the effect that the purchaser of said products shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent; and, II, in connection with the offering for sale, sale of distribution of merchandise in commerce, as defined in the Federal Trade Commission Act, (a) selling or making any contract or agreement for the sale of any such products on the condition, agreement or understanding that the purchaser thereof shall not use or deal in or sell the merchandise of a competitor or competitors of the corporate respondent; (b) enforcing or continuing in operation or effect any condition, agreement or understanding in, or in connection with, any existing sales contract or agreement which condition, agreement or understanding is to the effect that the purchaser of said products shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent; (c) offering a cash bonus or any other inducement to corporate respondent's independent dealers or other purchasers or prospective purchasers on the condition, agreement or understanding that such independent dealers or other purchasers or prospective purchasers shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent; (d) cancelling, or directly or by implication threatening the cancellation of, any contract or franchise or selling agreement with corporate respondent's independent dealers or other customers for the sale of said products because of the failure or refusal of such purchasers to purchase or deal exclusively in the merchandise sold and distributed by the corporate respondent; and (e) the performance of any act of intimidation or coercion either through statements, oral or written, made by representatives of corporate respondent at independent dealer field meetings or during the course of calls made upon independent dealers at their stores or at any other place, or the use of any system or practice, plan, or method of doing business, for the purpose or having the effect of intimidating or coercing such corporate respondent's independent dealers or other purchasers to purchase their merchandise requirements exclusively from corporate respondent; prohibited.

(Sec. 6, 38 Stat. 722; 15 U. S. C. 46. Interprets or applies secs. 3, 5, 38 Stat. 731, 719, as amended; 15 U. S. C. 14, 45) [Cease and desist order, Gamble-Skogmo, Inc., et al., Minneapolis, Minn., Docket 5575, June 11, 1952]

In the Matter of Gamble-Skogmo, Inc., a Corporation, Bert C. Gamble, Philip W. Skogmo, M. O. Weiby (Erroneously Designated in the Complaint as M. O. Wieby), H. R. Baker, Samuel Miles (Erroneously Designated in the Complaint as Samuel Mills), and R. C. Teuscher

Pursuant to the provisions of an act of Congress, entitled "An Act to supplement existing laws against unlawful restraints and monopolies, and for other purposes," approved October 15, 1914 (the Clayton Act), and the provisions of the Federal Trade Commission Act, the Federal Trade Commission on July 15, 1948, issued and subsequently served its complaint in this proceeding upon respondent Gamble-Skogmo, Inc., a corporation, and respondents Bert C. Gamble, Philip W. Skogmo, M. O. Weiby, Samuel Miles, and R. C. Teuscher, charging the respondents named in the complaint with having made sales and contracts for the sale of merchandise on the condition, agreement or understanding that the purchasers thereof should not use or deal in similar merchandise of a competitor or competitors of the respondent Gamble-Skogmo, Inc., in violation of the provisions of section 3 of said Clayton Act, and with the use of unfair methods of competition in commerce in the distribution and sale of merchandise in violation of the provisions of the Federal Trade Commission Act. After the issuance of said complaint and the filing of joint answer thereto by all the parties named in the caption hereof except H. R. Baker, testimony and other evidence in support of and in opposition to the allegations of said complaint were introduced before a hearing examiner of the Commission, theretofore designated by it, and said testimony and other evidence were duly recorded and filed in the office of the Commission. Thereafter, this proceeding came on for final hearing before the Commission on the said complaint, answer, testimony, and other evidence, recommended decision of the substitute hearing examiner, theretofore designated by the Commission to act in the place and stead of the original hearing examiner, respondents' exceptions to the recommended decision, briefs in support of and in opposition to the complaint, and oral arguments of counsel; and the Commission, having duly considered the matter and being now fully advised in the premises, finds that this proceeding is in the interest of the public and makes this its findings as to the facts [1] and its conclusion [1] drawn therefrom.

This proceeding having been heard by the Federal Trade Commission upon the complaint of the Commission, the joint answer thereto, testimony and other evidence taken before a hearing examiner of the Commission, theretofore duly designated by it, the recommended decision of the substitute hearing examiner duly designated to act in the place and stead of the original hearing examiner, and the exceptions to the recommended decision filed by respondents, briefs in support of and in opposition to the allegations of the complaint, and oral argument; and the Commission having made its findings as to the facts and its conclusion that the respondents there designated have violated the provisions of section 3 of that act of the Congress of the United States, entitled "An Act to supplement existing laws against unlawful restraints and monopolies, and for other purposes," approved October 15, 1914 (the Clayton Act), and the provisions of section 5 of the Federal Trade Commission Act:

I. *It is ordered*, That respondent Gamble-Skogmo, Inc., a corporation, and its officers, and respondents Bert C. Gamble, M. O. Weiby, R. C. Teuscher, and Samuel Miles, and said respondents' agents, representatives and employees, directly or through any corporate or other device, in connection with the offering for sale, sale or distribution of merchandise in commerce, as "commerce" is defined in the Clayton Act, do forthwith cease and desist from:

(a) Selling or making any contract or agreement for the sale of any such products on the condition, agreement or understanding that the purchaser thereof shall not use or deal in or sell the merchandise of a competitor or competitors of corporate respondent.

(b) Enforcing or continuing in operation or effect any condition, agreement or understanding in, or in connection with, any existing sales contract which condition, agreement or understanding is to the effect that the purchaser of said products shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent.

II. *It is further ordered*, That respondent Gamble-Skogmo, Inc., a corporation, and its officers, and respondents Bert C. Gamble, M. O. Weiby, R. C. Teuscher, and Samuel Miles, and said respondents' agents, representatives and employees, directly or through any corporate or other device, in connection with the offering for sale, sale or distribution of merchandise in commerce, as "commerce" is defined in the Federal Trade Commission Act, do forthwith cease and desist from:

(a) Selling or making any contract or agreement for the sale of any such products on the condition, agreement or understanding that the purchaser thereof shall not use or deal in or sell the merchandise of a competitor or competitors of the corporate respondent.

(b) Enforcing or continuing in operation or effect any condition, agreement or understanding in, or in connection with, any existing sales contract or agreement which condition, agreement or understanding is to the effect that the purchaser of said products shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent.

(c) Offering a cash bonus or any other inducement to corporate respondent's independent dealers or other purchasers or prospective purchasers on the condition, agreement or understanding that such independent dealers or other purchasers or prospective purchasers shall not use or deal in the merchandise of a competitor or competitors of the corporate respondent.

(d) Canceling, or directly or by implication threatening the cancellation of, any contract or franchise or selling agreement with corporate respondent's independent dealers or other customers for the sale of said products because of the failure or refusal of such purchasers to purchase or deal exclusively in the merchandise sold and distributed by the corporate respondent.

(e) The performance of any act of intimidation or coercion either through statements, oral or written, made by representatives of corporate respondent at independent dealer field meetings or during the course of calls made upon in-

[1] Filed as part of the original document.

dependent dealers at their stores or at any other place, or the use of any system or practice, plan, or method of doing business, for the purpose or having the effect of intimidating or coercing such corporate respondent's independent dealers or other purchasers to purchase their merchandise requirements exclusively from corporate respondent.

It is further ordered, That the complaint herein be, and the same hereby is, dismissed as to Philip W. Skogmo and H. R. Baker, both deceased.

It is further ordered, That respondents shall, within (60) days after service upon them of this order, file with the Commission a report, in writing, setting forth in detail the manner and form in which they have complied with this order.

Issued: June 11, 1952.

By the Commission.

[SEAL] D. C. DANIEL, *Secretary.*

[F. R. Doc. 52-9901; Filed, Sept. 10, 1952; 8:45 a. m.]

[Docket 5757]

PART 3—DIGEST OF CEASE AND DESIST ORDERS

HAIR EXPERTS, INC. ET AL.

Subpart—*Advertising falsely or misleadingly:* § 3.15 *Business status, advantages, or connection—Personnel or staff—Qualifications and abilities:* § 3.90 *History of product or offering;* § 3.170 *Qualities or properties of product or service;* § 3.205 *Scientific or other relevant facts.* In connection with the offering for sale and sale of treatments for the hair and scalp in which certain specified cosmetic and medicinal preparations are used; and in connection with the sale, offering for sale and distribution of certain specified cosmetic and medicinal preparations used in the treatment of conditions of the hair and scalp, or any other products or preparations of substantially similar composition or possessing substantially similar properties, whether sold under the same or any other name, disseminating, etc., any advertisements by means of the United States mails, or in commerce, or by any means to induce, etc., directly or indirectly, the purchase in commerce, etc., of respondents' products and treatments, which advertisements represent, directly or through inference, (a) that the use of said preparations, methods or treatments by respondents' operators in their various places of business and by purchasers of their preparations, in their homes, will cause hair to grow when growth has ceased and resulted in thin hair or partial baldness; (b) that the hair growing functions of the scalp will be rejuvenated; (c) that fuzz on the scalp will be developed into normal hair; (d) that the germicides included among respondents' preparations will penetrate below the skin surface, kill bacteria there located and will destroy bacilli on the scalp surface; (e) that their said preparations will prevent baldness, grow hair on bald heads and will enable an individual to maintain a thick growth of hair for life; will reopen clogged hair passages in the scalp, energize hair papillae, make sluggish blood circulation in the scalp normal, eliminate excessive falling hair, loose dandruff, itching and dryness and oiliness of the hair and scalp; (f) that the preparations, treatments and methods used by respondents are new scientific discoveries in the treatment of hair and scalp disorders; or, (g) that the respondents, or any of the respondents' respective representatives, agents or employees are "Trichologists," or the use of any similar name which may tend to, or does by implication, either directly or indirectly, convey the idea or inference that such persons have had competent training in dermatology or other branch of medicine having to do with the diagnosis and treatment of scalp disorders affecting the hair; prohibited.

(Sec. 6, 38 Stat. 722; 15 U. S. C. 46. Interprets or applies sec. 5, 38 Stat. 719, as amended; 15 U. S. C. 45) [Cease and desist order, Hair Experts, Inc., et al., Detroit, Mich., Docket 5757, May 17, 1952]

In the Matter of Hair Experts, Inc., a Corporation, and Robert W. Farrell, Harold E. Candler, and Abram Jacobson, Individually and as Officers of Said Corporation

This proceeding was heard by James A. Purcell, hearing examiner, upon the complaint of the Commission, respondents' joint answer, and respondents' substituted answer, which admitted all the material allegations of fact set forth in the complaint, with certain exceptions, which are apparent on the face of the record and correctly reflected in the findings.

Thereafter the proceeding came on for final consideration by said examiner, theretofore duly designated by the Commission, on the complaint and answer thereto, and proposed findings as to the facts and conclusions presented by counsel in support of the complaint—oral argument thereon not having been requested and respondents not having submitted proposed findings and conclusion—and said hearing examiner, having duly considered the record and having found that the proceeding was in the interest of the public, made his initial decision comprising certain findings as to the facts,[1] conclusions drawn therefrom and order to cease and desist.

No appeal having been filed from said initial decision of said trial examiner as provided for in Rule XXII, nor any other action taken as thereby provided to prevent said initial decision becoming the decision of the Commission thirty days from service thereof upon the parties, said initial decision, including said order to cease and desist, accordingly, under the provisions of said Rule XXII became the decision of the Commission on May 17, 1952.

The said order to cease and desist is as follows:

It is ordered, That the respondent Hair Experts, Inc., a corporation, and its officers, agents, representatives and employees, and the respondents Robert W. Farrell, Harold E. Candler, and Abram Jacobson, individually and as officers of said respondent corporation, their respective representatives, agents and employees, directly or through any corporate or other device, in connection with the offering for sale and sale of treatments of the hair and scalp in which the various cosmetic and medicinal preparations, as set out in the findings herein, are used; and in connection with the sale, offering for sale and distribution of the various cosmetic and medicinal preparations, as set out in the findings herein, which are used in the treatment of conditions of the hair and scalp, or any other products or preparations of substantially similar composition or possessing substantially similar properties, whether sold under the same or any other name, do forthwith cease and desist from, directly or indirectly:

1. Disseminating, or causing to be disseminated, by means of the United States mails, or by any means in commerce, as "commerce" is defined in the Federal Trade Commission Act, any advertisement which represents directly or though inference:

(a) That the use of said preparations, methods of treatments by their operators in their various places of business and by purchasers of their preparations, in their homes, will cause hair to grow when growth has ceased and resulted in thin hair or partial baldness.

(b) That the hair growing functions of the scalp will be rejuvenated.

(c) That fuzz on the scalp will be developed into normal hair.

(d) That the germicides included among their preparations will penetrate below the skin surface, kill bacteria there located and will destroy bacilli on the scalp surface.

(e) That their said preparations will prevent baldness, grow hair on bald heads and will enable an individual to maintain a thick growth of hair for life; will reopen clogged hair passages in the scalp, energize hair papillae, make sluggish blood circulation in the scalp normal, eliminate excessive falling hair, loose dandruff, itching and dryness and oiliness of the hair and scalp.

(f) That the preparations, treatments and methods used by respondents are new, scientific discoveries in the treatment of hair and scalp disorders.

(g) That the respondents, or any of the respondents' respective representatives, agents or employees are "Trichologists," or the use of any similar name which may tend to, or does by implication, either directly or indirectly, convey the idea or inference that such persons have had competent training in dermatology or other branch of medicine having to do with the diagnosis and treatment of scalp disorders affecting the hair.

2. Disseminating or causing to be disseminated, by any means, for the purpose of inducing or which is likely to induce, directly or indirectly, the purchase in commerce, as "commerce" is defined in the Federal Trade Commission Act, of respondents' products and treatments, any advertisement which con-

[1] Filed as part of the original document.

tains any of the representations prohibited in Paragraph 1 of this order.

By "Decision of the Commission and order to file report of compliance," Docket 5757, May 16, 1952, which announced and decreed fruition of said initial decision, report of compliance with the said order was required as follows:

It is ordered, That the respondents herein shall, within sixty (60) days after service upon them of this order, file with the Commission a report in writing setting forth in detail the manner and form in which they have complied with the order to cease and desist.

Issued: May 16, 1952.

By the Commission.

[SEAL] D. C. DANIEL, *Secretary.*

[F. R. Doc. 52-9903; Filed, Sept. 10, 1952; 8:47 a. m.]

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 53091]

PART 4—VESSELS IN FOREIGN AND DOMESTIC TRADES

REPORTS OF ARRIVALS AND DEPARTURES IN COASTWISE TRADE; FOREIGN COFFEE SHIPPED FROM UNITED STATES TO PUERTO RICO

Section 319 of the Tariff Act of 1930 authorizes the Legislature of Puerto Rico to impose duties on coffee imported into Puerto Rico, including coffee grown in a foreign country coming into Puerto Rico from the United States. The Legislature of Puerto Rico has imposed such duties.

In order to provide a control over such coffee shipped from the United States that will insure entry thereof and the payment of duty thereon in Puerto Rico, it is necessary that the carriers transporting the coffee from the United States to Puerto Rico file manifests for it in Puerto Rico.

Accordingly, § 4.81, Customs Regulations of 1943 (19 CFR 4.81), as amended, is hereby amended by redesignating paragraphs (c) and (d) as paragraphs (d) and (e) and by inserting a new paragraph (c) to read as follows:

§ 4.81 *Reports of arrivals and departures in coastwise trade.* * * *

(c) When foreign coffee made dutiable by the Legislature of Puerto Rico under the authority of section 319 of the Tariff Act of 1930 is shipped from the United States to Puerto Rico, the carrier transporting the coffee shall present a manifest therefor, in duplicate, to the collector at the port of discharge in Puerto Rico.

(R. S. 161, 251; 5 U. S. C. 161, 19 U. S. C. 66)

[SEAL] FRANK DOW, *Commissioner of Customs.*

Approved: August 29, 1952.

JOHN S. GRAHAM, *Acting Secretary of the Treasury.*

[F. R. Doc. 52-9920; Filed, Sept. 10, 1952; 8:52 a. m.]

TITLE 21—FOOD AND DRUGS

Chapter I—Food and Drug Administration, Federal Security Agency

PART 51—CANNED VEGETABLES; DEFINITIONS AND STANDARDS OF IDENTITY; QUALITY; AND FILL OF CONTAINER

PART 52—CANNED VEGETABLES OTHER THAN THOSE SPECIFICALLY REGULATED; DEFINITIONS AND STANDARDS OF IDENTITY

FINAL ORDER AMENDING DEFINITION AND STANDARD OF IDENTITY AND ESTABLISHING STANDARD OF FILL OF CONTAINER FOR CANNED MUSHROOMS

In the matter of amending the definition and standard of identity for canned mushrooms and adopting a standard of fill of container for canned mushrooms:

By virtue of the authority vested in the Federal Security Administrator by the provisions of the Federal Food, Drug, and Cosmetic Act (secs. 401, 701, 52 Stat. 1046, 1055; 21 U. S. C. 341, 371), and upon the basis of the whole record and the reliable, probative, and substantial evidence received at the hearings held pursuant to notices published in the FEDERAL REGISTER on July 15, 1949 (14 F. R. 3922) and March 10, 1950 (15 F. R. 1310), and upon consideration of the exceptions filed to the proposed order issued by the Federal Security Administrator on February 24, 1951 (16 F. R. 1797, 2130), which exceptions are allowed in part and rejected in part, as appears from notations on the exceptions on file with the Hearing Clerk, Federal Security Agency, Room 5440, Federal Security Building, Fourth Street and Independence Avenue SW., Washington, D. C., and as is apparent from the detailed findings made below, the following order is promulgated:

Findings of fact.[1] 1. In 1937 there was established a standard of fill of container for canned mushrooms under authority conferred on the Secretary of Agriculture by the McNary-Mapes Amendment to the Federal Food and Drugs Act of 1906 (46 Stat. 1019; 21 U. S. C. 10).[2] This standard was in force until the act of 1906 was superseded by the Federal Food, Drug, and Cosmetic Act of 1938. In 1939, a definition and standard of identity was established for canned mushrooms (21 CFR Part 52, Canned Vegetables Other Than Those Specifically Regulated). This standard provides that canned mushrooms are the caps and stems of mushrooms in the optional forms of buttons, whole, slices, or pieces and stems of mushrooms with water, sealed in a container and so processed by heat as to prevent spoilage. Optional ingredients permitted are salt, citric acid, a vinegar, spice, sugar, and corn sugar. The only optional ingredients known to have been used in canned mushrooms, however, are salt, for seasoning, and citric acid for obtaining a lighter color of the canned mushrooms. During World War II, when tin containers were in short supply, some mushroom canners canned mushrooms in glass containers. This experience revealed that mushrooms canned in glass appeared to become darker during storage. Ready sales, however, obviated prolonged storage during this period. Mushrooms canned in tin containers do not darken during storage but on the contrary, for a limited period, become lighter in color than when first canned. As the supply of tin increased, canners of mushrooms in glass returned to the use of tin containers. In 1948 and 1949, a canner of mushrooms interested in canning mushrooms in glass containers made experimental packs containing ascorbic acid and citric acid for retarding the color changes during storage. This canner applied for a hearing on a proposal to amend the standard of identity for canned mushrooms to include ascorbic acid as an optional ingredient. A hearing was held on this proposal (14 F. R. 3922) but before a tentative order was published application was made by the Cultivated Mushroom Institute of America to hold a second hearing to take additional evidence in opposition to the proposal to include ascorbic acid as an optional ingredient and also to take evidence on a proposal by the Cultivated Mushroom Institute of America to restrict the optional ingredients to water and salt. In granting this application, the Administrator on his own initiative also proposed to take evidence on a proposal to establish a standard of fill of container for canned mushrooms (15 F. R. 1310). A second hearing was held pursuant to this application. These findings are based on the evidence presented at both hearings. (R. 10, 18, 19, 21, 23, 28, 46–47, 54–56, 152–153, 158–159, 200–201, 237–239, 247, 248, 400, 507, 509, 513, 522, 566, 725, 733, 838–840, 841; Ex. 2, 16, 18)

2. Experimental packs of canned mushrooms prepared on a semicommercial scale show that such mushrooms canned in glass or tin containers with small quantities of citric acid and ascorbic acid are lighter in color than mushrooms of the same quality with only salt and water. This is true at any time after canning. When used together, citric acid and ascorbic acid have a greater lightening effect on color of canned mushrooms than either acid used alone. The effect on the color is increased as the quantity of acids added is increased, and this effect is more pronounced in tin containers than in glass. (R. 43–57, 290, 325–326, 330, 349, 734–735, 758; Ex. 8, 10, 11, 16)

3. To obtain high-quality canned mushrooms, the raw mushrooms used should be picked at optimum maturity for canning and canned promptly after picking. Sometimes, because of the receipt of a large supply of raw mushrooms by the cannery, or for other reasons, it may be necessary to hold the raw stock for a day or several days before canning. Such a holding period results in this raw stock becoming stale. All mushrooms undergo changes in color during the canning process. Stale mushrooms after canning are darker in color than they would be if canned when freshly

[1] The citations following each finding of fact refer to the pages of the transcript of the testimony and the exhibits received in evidence at the hearing.

[2] This standard will hereafter be referred to as the McNary-Mapes standard.

picked. The addition of small amounts of citric acid in the canning process lessens the darkening that results from canning. This inhibiting effect is more noticeable when stale mushrooms are used than when fresh, high-quality mushrooms are used. The mechanism of the chemical action of dilute citric acid which results in a lighter color of the canned mushrooms is not definitely shown by the record, but it appears that its effect in lightening the color of mushrooms is caused by an intensified reaction between the contents of the container and tin. Citric acid is the only acid known to be commercially used for this purpose. There was evidence that other acid-reacting substances have been used but their identity was unknown to the canners who testified at the hearings. There also was evidence that the addition of any substance which lowers the pH will lighten the color of canned mushrooms. (R. 141–142, 193–194, 195, 224–225, 227, 230, 252–253, 330, 350, 522, 527–528, 530, 556–558, 568, 646, 648–649, 651, 653, 670–671, 692–693, 784; Ex. 8)

4. In determining the grade for canned mushrooms according to the standards promulgated by the Production and Marketing Administration of the United States Department of Agriculture, more importance is attached to the factor of color than to any of the other factors considered, such as uniformity of size and symmetry, absence of defects, and tenderness. The use of citric acid enables a canner to can stale mushrooms which are graded higher on the factor of color than such stale mushrooms would grade if canned without the addition of citric acid. The use of citric acid in canned mushrooms has not promoted honesty and fair dealing in the interest of consumers. (R. 159–160, 224, 248, 356, 367–368, 559–560, 646–647, 651; Ex. 15).

5. The lightening of the color during storage of mushrooms canned in tin containers with only water and salt appears to be due to a reaction of the packing medium with the tin of the container, although the mechanism causing the lightening is not known. When the acidity of the packing medium is increased by the use of any acid-reacting substance, this reaction is intensified. The reaction which affects the color of the canned mushrooms does not reach an equilibrium for some time, and the mushrooms in tin containers continue to become lighter in color during the first few months in which they are held in storage. (R. 355, 357–358, 693, 738)

6. The mechanism of the action of ascorbic acid on the color of canned mushrooms, when it is added in small amounts in the canning process, is not established. During processing there is an apparent reduction in the amount of ascorbic acid, which indicates a reaction of the ascorbic acid with oxygen inside the container. There is some increase in acidity when ascorbic acid is used, but its effect on the pH of canned mushrooms is less pronounced than that of like quantities of citric acid. (R. 74, 76, 82, 86, 350–354, 784, 805, 876; Ex. 8, 14, 16, 22)

7. The characteristic light tan color of canned mushrooms in tin containers prepared from mushrooms picked at optimum maturity and promptly canned furnishes purchasers a basis for judging the quality of canned mushrooms both in tin and glass containers. Since the color of mushrooms canned in glass containers is not as light as that of those in tin containers, the mushrooms in glass containers are at a disadvantage. By limiting the quantity of the ascorbic acid used so that its effect on the color of the mushrooms is to restrict darkening from oxidation, it is possible to obtain this desirable effect without likelihood of abuse. In the few experiments reported where the pH of the liquid drained from the canned mushrooms was determined, ascorbic acid alone in amounts not exceeding 150 milligrams per 4 ounces drained weight of mushrooms lowered the pH an average of approximately 0.25 when compared with the pH of similar mushrooms canned with water and salt only. It is unlikely that there will be abuse from the use of ascorbic acid alone, in amounts not greater than 150 milligrams per 4 ounces of drained mushrooms. (R. 21, 57, 78, 156–157, 190–191, 553–557, 581, 648, 727, 737, 799–800, 816, 876; Ex. 8, 9, 14, 16, 22)

8. The pH of mushrooms canned with water and salt as reported in this record varies from 5.9 to 6.7. The addition of an acid lowers the pH of canned mushrooms, depending on the acid used and the amount added. In conjunction with the proposal that no added acids be permitted, it was proposed to require that the pH of canned mushrooms be not less than 6.0. The data on the pH of canned mushrooms are not sufficient for prescribing such a limit. (R. 57, 181–183, 291–294, 300, 333–334, 376, 755, 876, 877; Ex. 8, 9, 14, 16, 22)

9. The McNary-Mapes amendment to the Food and Drugs Act of 1906 authorized the adoption of standards of quality, condition, and fill of container for most canned foods. The standard of fill of container for canned mushrooms promulgated by the Secretary of Agriculture in 1937 provided for minimum drained weights for mushrooms packed in ten specified containers, and for minimum drained weights based on a ratio of 1 ounce of drained mushrooms for each 3 cubic inches inside capacity for containers other than those specified. That standard became inoperative when the Food and Drugs Act of 1906 was superseded by the Federal Food, Drug, and Cosmetic Act of 1938 and since that time there has been no standard of fill of container for canned mushrooms. (R. 839–842; Ex. 18)

10. It is the general practice of canners to blanch the fresh mushrooms in hot water or steam before packing into containers. This blanching results in some shrinkage of the fresh mushrooms that would otherwise occur during processing and might result in a slack fill. Even though the McNary-Mapes standard has not been in force for several years, canners of mushrooms have continued the practice of blanching and filling to meet the level prescribed under that standard. Compliance with the standard for fill of container for canned mushrooms has generally resulted in the containers being well filled with mushrooms. (R. 150–152, 220, 506–507, 552–553, 561, 587–588, 645, 650–651, 678, 829–831, 840–846, 851; Ex. 18, 19)

11. Canned mushrooms are now packed in substantial quantities in containers of sizes for which specific drained weights were not specified in the McNary-Mapes standard. Some of the containers formerly extensively used are now of minor importance. In standards of fill of container, canners generally prefer specific requirements as to the drained weights for containers extensively used rather than general requirements fixing drained weights calculated from the capacity of the container. The cans now extensively used and the drained weights of mushrooms found necessary to fill them properly are as follows:

Trade designation	Over-all dimensions sealed can		Weight of drained mushrooms
	Diameter	Height	
	Inches	*Inches*	*Ounces (avoirdupois)*
202 x 204	2 1/16	2 1/4	2
211 x 212	2 13/16	2 3/4	4
300 x 400	3	4	8
307 x 510	3 1/16	5 5/8	16
603 x 700	6 1/16	7	68

(R. 552–553, 587–588, 650–651, 678, 839, 841–847, 851–852; Ex. 18–21)

12. Since containers of sizes other than those named in finding 11 may also be used, it is necessary to provide also for drained weights based on capacity of containers for which no specific requirements are made. A suitable and practicable method for determining the capacity of containers is the general method for determining water capacity of containers in 21 CFR 10.1. The following requirements for drained weights based on the water capacity of the container will insure that such containers are properly filled. For containers with a water capacity (at 68° F.) of less than 11 ounces avoirdupois, the drained weight of mushrooms is not less than 56 percent of the water capacity of the container. For containers with a water capacity of 11 ounces or more but less than 25 ounces, the weight of the drained mushrooms is not less than 59 percent of the water capacity of the container. For containers with a water capacity of 25 ounces or more, the weight of the drained mushrooms is not less than 62 percent of the water capacity of the container. (R. 841–842, 846–848, 851, 853–863; Ex. 6, 21)

13. A suitable and practicable method for determining the drained weight of canned mushrooms which is essentially the same as that prescribed in the McNary-Mapes standard is as follows: Tilt the opened container so as to distribute the contents evenly over the meshes of a circular sieve which has been previously weighed. The diameter of the sieve is 8 inches if the quantity of the contents of the container is less than 3 pounds, and 12 inches if such quantity is 3 pounds or more. The bottom of the sieve is woven-wire cloth which complies with the specifications for such cloth set forth under "2380 Micron (No. 8)" in table 1 of "Standard Specifications for Sieves," published March 1, 1940, in L. C.

584 of the U. S. Department of Commerce, National Bureau of Standards. Without shifting the material on the sieve, so incline the sieve as to facilitate drainage. Two minutes after drainage begins, weigh the sieve and drained mushrooms. The weight so found, less the weight of the sieve, shall be considered to be the weight of drained mushrooms. (R. 848–849, 863–864; Ex. 6, 18, 20, 21)

14. A label statement which adequately informs consumers when canned mushrooms fail to meet the prescribed standard of fill of container is the general statement of substandard fill specified in 21 CFR 10.2 (b). (R. 850–851; Ex. 6, 21)

Conclusions. Upon consideration of the whole record and the foregoing findings of fact, it is concluded that it will promote honesty and fair dealing in the interest of consumers:

(1) To amend the definition and standard of identity for canned mushrooms contained in § 52.990 by deleting citric acid, vinegar, spice, sugar, and corn sugar as optional ingredients and by making ascorbic acid in amounts not exceeding 37.5 milligrams per 1 ounce of drained mushrooms an optional ingredient.

(2) To adopt the standard of fill of container for canned mushrooms hereinafter set forth in § 51.503.

1. Section 52.990 (c) and (f) is therefore amended as set forth below:

§ 52.990 *Canned vegetables; identity; label statement of optional ingredients.*

* * *

(c) To the vegetable ingredient water is added; except that pimentos may be canned with or without added water, and sweet potatoes in mashed form are canned without added water, and asparagus may be canned with added water, asparagus juice, or a mixture or both. For the purposes of this section, asparagus juice is the clear, unfermented liquid expressed from the washed and heated sprouts or parts of sprouts of the asparagus plant; mixtures of asparagus juice and water are considered to be water when such mixtures are used as a packing medium for canned asparagus. In the case of artichokes, citric acid or a vinegar is added in such quantity as to reduce the pH of the finished canned vegetable to 4.5 or below. The following optional ingredients, in the case of the vegetables specified, may be added:

(1) Citric acid or a vinegar, in the cases of all vegetables (except artichokes, in which such ingredient is prescribed, and except canned mushrooms, in which no such ingredient is permitted), in a quantity not more than sufficient to permit effective processing by heat without discoloration or other impairment of the article.

(2) An edible vegetable oil, in the cases of artichokes and pimientos.

(3) In the case of potatoes, purified calcium chloride, calcium sulfate, calcium citrate, monocalcium phosphate, or any mixture of two or more such calcium salts, in a quantity reasonably necessary to firm the potatoes, but in no case in a quantity such that the calcium contained in any such calcium salt or mixture is more than 0.051 percent of the weight of the finished food.

(4) Snaps, in the cases of shelled beans, black-eyed peas, and field peas.

(5) Salt may be added to any of the canned vegetables in this section, in a quantity sufficient to season the food.

(6) In the cases of all vegetables (except canned mushrooms) one or more of the following optional seasoning ingredients may be added in a quantity sufficient to season the food:

(i) A vinegar.

(ii) Spice.

(iii) Refined sugar (sucrose).

(iv) Refined corn sugar (dextrose).

(7) In the case of canned mushrooms, ascorbic acid (vitamin C) may be added in a quantity not to exceed 37.5 milligrams for each ounce of drained weight of mushrooms.

The food is sealed in a container, and so processed by heat as to prevent spoilage.

* * * * *

(f) (1) If the optional ingredient specified in paragraph (c) (2) of this section is present, the label shall bear the statement "_____ Oil Added" or "With Added _____ Oil," the blank being filled in with the common or usual name of the oil.

(2) If the optional ingredient specified in paragraph (c) (3) of this section is present, the label shall bear the statement "Trace of _____ Added" or "With Added Trace of _____," the blank being filled in with the words "Calcium Salt" or "Calcium Salts," as the case may be, or with the name or names of the particular calcium salt or salts added.

(3) If the optional ingredient specified in paragraph (c) (4) of this section is present, the label shall bear the statement "With Snaps."

(4) If optional seasoning ingredient of paragraph (c) (6) (i) of this section is present, the label shall bear the statement "Seasoned with Vinegar" or "Seasoned with _____ Vinegar," the blank being filled in with the common or usual name of the vinegar.

(5) If optional seasoning ingredient of paragraph (c) (6) (ii) of this section is present, the label shall bear the statement "Spice Added" or "With Added Spice."

(6) If a vinegar, spice, and vegetable oil, or any two of these are present, the label may bear, in lieu of the statements prescribed in this section, showing the presence of such ingredients, a combination of such statements, as for example, "With Added Cider Vinegar, Spice, and Olive Oil."

(7) If asparagus juice is used as a packing medium in canned asparagus, the label shall bear the statement "Packed in Asparagus Juice."

* * * * *

2. Part 51 is amended by adding the following new section:

§ 51.503 *Canned mushrooms; fill of container; label statement of substandard fill.* The standard of fill of container for canned mushrooms is a fill such that:

(a) The weight of drained mushrooms in a container the dimensions of which are specified in the following table is not less than the weight of drained mushrooms prescribed in such table for such container:

Trade designation	Over-all dimensions sealed can		Weight of drained mushrooms
	Diameter	Height	
	Inches	*Inches*	*Ounces (avoirdupois)*
202 x 204	2 1/4	2 1/4	2
211 x 212	2 13/16	2 3/4	4
300 x 400	3	4	8
307 x 510	3 7/16	5 1/16	16
603 x 700	6 1/16	7	68

(b) The drained weight of mushrooms in containers of a size not specified in paragraph (a) of this section is not less than 56 percent of the water capacity of the container, if such water capacity is less than 11.0 ounces avoirdupois; not less than 59 percent of the water capacity of the container, if such water capacity is 11.0 ounces or more but less than 25 ounces avoirdupois; and not less than 62 percent of the water capacity of the container, if such water capacity is 25 ounces avoirdupois or more.

(c) Water capacity of containers is determined by the general method provided in § 10.1 of this chapter.

(d) Drained weight is determined by the following method: Tilt the opened container so as to distribute the contents evenly over the meshes of a circular sieve which has been previously weighed. The diameter of the sieve is 8 inches if the quantity of contents of the container is less than 3 pounds, and 12 inches if such quantity is 3 pounds or more. The bottom of the sieve is woven-wire cloth which complies with the specifications for such cloth set forth under "2380 Micron (No. 8)" in table 1 of "Standard Specifications for Sieves," published March 1, 1940, in L. C. 584 of the U. S. Department of Commerce, National Bureau of Standards. Without shifting the material on the sieve, so incline the sieve as to facilitate drainage. Two minutes after drainage begins, weigh the sieve and drained mushrooms. The weight so found, less the weight of the sieve, shall be considered to be the weight of drained mushrooms.

(e) If canned mushrooms fall below the applicable standard of fill of container prescribed in paragraph (a) or (b) of this section, the label shall bear the general statement of substandard fill specified in § 10.2 (b) of this chapter, in the manner and form therein specified.

Effective date. These regulations shall become effective 90 days after the date of publication of this order in the FEDERAL REGISTER.

(Sec. 701; 52 Stat. 1055; 21 U. S. C. 371. Interpret or apply sec. 401, 52 Stat. 1046; 21 U. S. C. 341)

Dated: September 5, 1952.

[SEAL] JOHN L. THURSTON,
Acting Administrator.

[F. R. Doc. 52-9928; Filed, Sept. 10, 1952; 8:52 a. m.]

TITLE 31—MONEY AND FINANCE: TREASURY

Chapter V—Foreign Assets Control, Department of the Treasury

PART 500—FOREIGN ASSETS CONTROL REGULATIONS

PAYMENT OF CERTAIN CHECKS AND DRAFTS; COMPLETION OF CERTAIN SECURITIES TRANSACTIONS; EXPIRATION

EXPIRATION OF SECTIONS

Notification is hereby given of the expiration of §§ 500.531 and 500.532 which expired by their own terms on January 17, 1951, and December 21, 1950, respectively.

(Sec. 5, 40 Stat. 415, as amended; 50 U. S. C. App. 5; E. O. 9193, July 6, 1942, 7 F. R. 5205, 3 CFR 1943 Cum. Sup., E. O. 9989, Aug. 20, 1948, 13 F. R. 4891; 3 CFR 1948 Sup.)

[SEAL] E. H. FOLEY,
Acting Secretary of the Treasury.

[F. R. Doc. 52-9933; Filed, Sept. 10, 1952; 8:53 a. m.]

TITLE 32A—NATIONAL DEFENSE, APPENDIX

Chapter III—Office of Price Stabilization, Economic Stabilization Agency

[General Overriding Regulation 35]

GOR 35—PASS THROUGH FOR STEEL, PIG IRON, COPPER AND ALUMINUM COST INCREASES

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this General Overriding Regulation 35 is hereby issued.

STATEMENT OF CONSIDERATIONS

This General Overriding Regulation permits manufacturers who process steel, pig iron, copper, and aluminum to pass through at each stage of fabrication, the increases in ceiling prices which have recently been authorized for these metals.

On May 21, 1952, the Acting Director of the Office of Defense Mobilization directed the Office of Price Stabilization to increase the ceiling prices of brass-mill products and copper wire-mill products in order to meet the situation which had arisen when the Chilean Government terminated its agreement to sell copper to the United States at 27½ cents per pound. In compliance with this directive, Ceiling Price Regulation 68, covering brass-mill products, and Ceiling Price Regulation 110, covering copper wire-mill products, were amended on June 30, 1952, to provide substantial increases in the ceiling prices of these commodities.

On July 24, 1952, the Acting Director of Defense Mobilization directed the Office of Price Stabilization to increase prices for carbon iron and steel and other steel mill products. In compliance with this directive, Revision 1 of Supplementary Regulation 100 to the General Ceiling Price Regulation was issued on August 19, and steel producers subject to the voluntary agreement were simultaneously permitted to take the increases provided in this Revision. On September 4, 1952, Supplementary Regulation 116 to the General Ceiling Price Regulation was issued providing equivalent treatment for pig iron.

During July, the three major producers of aluminum applied for increases in their ceiling prices to reflect various cost increases which had been incurred in materials, freight, and labor. These applications were submitted under certain provisions of General Overriding Regulation 29, relating to commodities extremely critical to the defense program. Following the review of these applications, the Office of Price Stabilization on August 6, 1952, authorized price increases for aluminum pig and ingot and primary aluminum fabrications.

The ceiling price increases authorized for copper, brass, steel, and pig iron were substantially in excess of any amounts that could be justified by the existing standards of the Office of Price Stabilization and were granted only on the basis of specific directives of the Acting Director of the Office of Defense Mobilization. The increase for aluminum, while in accordance with agency standards, was permissible only in view of the extreme importance of that metal to the defense program.

The impact of these ceiling price increases on subsequent fabricators of these metals is very substantial in many cases. Ordinarily, however, such subsequent fabricators would be permitted to make corresponding adjustments in their ceiling prices only to the extent justified under existing agency standards particularly the Industry Earnings Standard. In view of the special circumstances involved in these metals price increases, however, the Director of Price Stabilization has determined that more specific action is required in order to protect subsequent fabricators from undue hardship resulting from the actions which the agency had been directed to take.

Following careful exploration of a number of alternative approaches, the Director has decided to permit this price increase for the three primary metals to be passed through at subsequent stages of fabrication without absorption and, of course, without pyramiding. This procedure will, in effect, restore the operating position of each subsequent fabricator to the same level which he would have experienced if it had not been necessary to increase the ceiling prices for the basic metals.

While this action thus compensates subsequent fabricators for the increases which had to be granted for the three basic metals, it is important to emphasize that it is limited to this objective only. It is not intended to provide or permit any adjustments for other changes in costs of any kind whatever. The effects of any other kind of cost increases on industries or individual concerns will continue to be considered in the future, as in the past, on the basis of existing agency standards. Where relief under such standards is appropriate, every effort will be made to grant it as promptly as possible.

In essence, this regulation provides, first, that primary processors of pig iron and steel, aluminum, brass and copper wire-mill products will be permitted to reflect immediately in their ceiling prices the exact amount of the cost increases which they have incurred as a result of the ceiling price increases authorized for these metals. For simplicity of administration, it has been assumed that the suppliers of these metals will in all cases have increased their actual selling prices by the exact amount authorized. While this may not be universally true, all the information available to the Office of Price Stabilization indicates that these metals have in the recent past and are currently being sold at ceiling. An appendix to the regulation lists the ceiling price increases authorized for pig iron and mill products. Adjustments may be made on the basis of these listed increases.

At subsequent stages of fabrication, the problem becomes more complex. There is no way in which a purchaser of electric motors, for example, can determine for himself the extent to which the manufacturer of motors has been permitted to increase his prices under this regulation. Moreover, there will be numerous cases in which fabricators may not wish to increase their actual prices by the full amount permitted under this regulation. It would obviously be inappropriate to permit manufacturers to pass through cost increases which they have not, in fact, experienced.

Under the regulation processors at subsequent stages may adjust their ceiling prices only when their suppliers at earlier stages of fabrication have raised their selling prices over their old ceilings. Generally OPS regulations have established ceiling prices for commodities at successive levels of fabrication in approximate relation to each other. For this reason, where selling prices at any stage of fabrication are below ceilings, processors at subsequent stages are usually able to absorb increases in their suppliers' prices until and unless these exceed the old ceilings.

The adjustments provided in this regulation are limited to those reflecting increases in costs of "manufacturing materials," which are defined as including only materials that enter directly into the commodities whose ceiling prices are being adjusted, and packaging materials and containers other than returnable containers. No adjustments can be taken to reflect increased cost of capital equipment. The cost of capital equipment represents an element of overhead, and the calculation of unit overhead involves too great complexities to permit its handling under this regulation. Moreover, the impact of changes in volume on unit overhead will generally be far greater than those resulting from the metals' price increases. Adjustments for any actual increases in overhead costs will therefore be considered under existing agency standards, on the same basis as any other cost elements.

The regulation establishes the following general procedure: Each processor who sells his product to other manufacturers for further fabrication, and who has raised his price above his previous ceiling, must provide each subsequent

manufacturer with sufficient information to permit him to determine the amount of the cost increase resulting from this regulation. He can then calculate, in accordance with the procedures established in the regulation, the amount of the ceiling price increase to which he is, in turn, entitled. If he sells his product to other manufacturers for still further processing, he must, of course, provide similar notification. It is recognized that this notification procedure may be burdensome in some cases, but there is no other way in which subsequent manufacturers can obtain the information needed to determine the adjustments to which they may be entitled. However, the Office of Price Stabilization will undertake to review this procedure in the light of actual experience with a view to determining at an early date whether the procedure can be simplified consistent with the basic objectives of the regulation.

Moreover, it is clear that the difficulties involved will be least serious for the manufacturers who are most in need of price relief—those who purchase directly from the mill. They can readily make their adjustments on the basis of the information supplied in Appendix A. For some manufacturers of consumer durable goods, particularly for those who make a large number of different commodities, it may in some cases be difficult to compute an adjustment under this regulation. However, these manufacturers will not be affected as quickly or as strongly by the increased cost of mill products.

It is recognized also that the cost increases resulting from the adjustments permitted under this regulation may not all occur at one time, as far as any particular manufacturer is concerned. If he is purchasing a variety of products from different sources, he probably will not receive new shipments of all these products or from all these sources at any one time. Consequently, he may, at his option, adjust his ceiling prices step-by-step as soon as he is affected by any particular increase, or he may prefer to postpone his adjustments until he has clearer information with respect to the total impact of his increases. It would, of course, be preferable if all adjustments could be made simultaneously, but there is no way in which this can be done under the circumstances.

The regulation provides two general methods by which a manufacturer can calculate the adjustments to which he may be entitled. The first is by calculating an adjustment for an individual commodity on the basis of the materials-cost increases incurred for that individual commodity. For multi-product concerns, however, this procedure would involve serious difficulties and provision has therefore been made for calculating a group adjustment factor or factors. These factors can, of course, be applied only to commodities processed directly or indirectly from the three primary metals.

The regulation also makes appropriate provision for integrated companies which themselves manufacture the primary metals and also process them further into semi-manufactured or end products.

The regulation provides that each manufacturer who takes advantage of its provisions must keep accurate records of his calculations and transactions. It does not, at present, require any reports of these calculations or adjustments to be filed with the Office of Price Stabilization, but such reports may be required subsequently. For example, it may be decided to conduct surveys in particular areas to determine how well this regulation is accomplishing its purpose. In that event, reports may be required from representative manufacturers.

In the formulation of this regulation there has been consultation with industry representatives, including trade association representatives, to the extent practicable, and consideration has been given to their recommendations.

So far as practicable, the Director has given due consideration to the national effort to achieve maximum production in furtherance of the objectives of the Defense Production Act of 1950, as amended, and to relevant facts of general applicability. In the judgment of the Director, the provisions of this regulation comply with all the applicable requirements with respect to the establishment of ceiling prices set forth in the Defense Production Act of 1950, as amended.

Every effort has been made to conform this regulation to existing business practices, cost practices, or methods, or means or aids to distribution. Insofar as any provisions of this regulation may operate to compel changes in business practices, cost practices or methods, or means or aids to distribution, such provisions are found by the Director of Price Stabilization to be necessary to prevent circumvention or evasion of this regulation.

REGULATORY PROVISIONS

Sec.

1. What this regulation does.
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16. Excise, sales or similar taxes.
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18. Further action by the Director.
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21. Definitions.

AUTHORITY: Sections 1 to 21 issued under sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended; 50 U. S. C. App. Sup. 2101-2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105; 3 CFR 1950 Supp.

SECTION 1. *What this regulation does.* This is an adjustment regulation. It permits manufacturers to adjust their ceiling prices in order to "pass through" increases in costs resulting from ceiling price increases for steel, pig iron, copper and aluminum. Adjustments may be made by primary processors as well as by manufacturers at subsequent stages of processing.

Primary processors calculate their adjustments on the basis of the increases authorized for steel-mill products by Revision 1 of SR 100 to the GCPR, and by parallel action for steel producers under the voluntary agreement; for aluminum-mill products by SR 113 to the GCPR; for pig iron by SR 116 to the GCPR; for brass-mill products by Amendment 1 to CPR 68; and for copper wire-mill products by Amendment 1 to CPR 110. These ceiling price increases are listed in Appendix A.

Subsequent processors calculate their adjustments on the basis of increases which their suppliers obtain and pass on to them under this regulation. Subsequent processors are to be notified of the increases made by their suppliers.

The adjustment provisions of this regulation do not apply to distributors since increases in manufacturers' prices may be passed through under the provisions of the applicable distribution regulations. However, manufacturers may request their distributors to notify them of the increases taken on commodities covered by this regulation.

SEC. 2. *Coverage.* This regulation applies in the United States, its territories and possessions, and in the District of Columbia. The adjustment provisions cover manufacturers who further process any of the products listed in Appendix A, or any commodities manufactured from such products. However, no adjustments may be made by sellers under CPR 93, Construction and Related Services and Sales of Installed Materials, and under CPR 156, Fabricated Structural Steel, Miscellaneous and Ornamental Iron, and Vessel Shop Products for Field Assembly or Erection. These two regulations provide for the use of current costs in the calculation of ceiling prices. Consequently, no adjustment for increased materials costs is required.

The notification provision covers both manufacturers and distributors who sell any of these products or commodities to manufacturers.

SEC. 3. *When you may make your adjustments.* The ceiling price adjustments authorized by this regulation may be made at any time convenient to you. You may decide for the present to make no adjustments or to take only part of your permitted increase. If so, you may later take whatever part remains, as well as any additional increases to which you may then be entitled.

It may, in some cases, be desirable to make more than one adjustment. For example, a manufacturer who buys both mill products and fabricated parts, will be affected immediately by the increase

in the cost of his mill products, while his fabricated-parts costs may not rise for some period of time. In that situation, he may well decide to avail himself promptly of the adjustment to which he is entitled on account of the increase in the cost of his mill products. He may, if he wishes, make later adjustments for the increase in the cost of the fabricated parts.

SEC. 4. *General description of how you make your adjustments.* To make your adjustment you first find out what *kind* of cost increases entitle you to an adjustment. This is dealt with in section 5. You next learn how to determine the exact *amount* of the cost increase which may be reflected. This is spelled out in sections 6 and 7. Having found how to determine the *kind* and the *amount* of the cost increases which you may "pass through," you have a choice of two methods for adjusting the ceilings of the commodities to which the cost increases apply—an individual-commodity method and a group factor method.

Under section 8 you allocate cost increases on an *individual-commodity* basis. You adjust the old ceiling of a commodity to reflect the particular cost increases which apply to it. Under section 9 cost increases are allocated on a *group* basis. You calculate a percentage adjustment factor which represents the average increase for a group of commodities. This factor may then be used to adjust the ceilings of each of the commodities in that group.

If you cannot or are unable without undue burden to make your adjustments either by the individual-commodity method or by the group-factor method, you may propose an alternate method under section 10.

SEC. 5. *Cost increases which entitle you to make an adjustment.* This section relates only to the *kind* of cost increases which entitle you to make an adjustment. It does not cover either the *amount* of the cost increases or the *method* for making the adjustment.

(a) You may adjust your ceilings for increases incurred by you above your suppliers' old ceilings of any of the products listed in Appendix A or of any commodity made from any of these products, provided you use such product or commodity as a "manufacturing material." The term "manufacturing material" includes only materials that enter directly into the commodities whole ceiling prices are being adjusted, and packaging materials and containers, other than returnable containers. It does not include, for example, expendable tools or any materials used in replacing, maintaining, or expanding your plant and equipment.

You may make an adjustment only for increases above your supplier's old ceiling price. If your supplier was selling below his old ceiling and the increase he takes does *not* result in a selling price above the old ceiling, no adjustment may be made.

You need not, of course, make an adjustment for all eligible cost increases. For example, a manufacturer may be buying many different manufacturing materials from a large number of suppliers. However, only two of the increases entitling him to an adjustment are of real significance in his cost of production. He may, therefore, decide to limit his adjustment to the two important increases and ignore the rest.

(b) *Exclusions*—(1) *Products listed in Appendix A.* No adjustment may be taken under this regulation on sales by the manufacturer of any of the products listed in Appendix A. However, if you are a manufacturer of any such products, and also use them in the manufacture of processed commodities, you should refer to section 14, which deals specifically with this problem.

(2) *Conversion steel.* No adjustments for the use of conversion steel may be made under this regulation. Adjustment provisions for users of conversion steel are available in other OPS regulations. These provisions can continue to be used as before.

(3) *Imported steel.* No adjustment may be made under this regulation for any increases in the cost of imported steel.

SEC. 6. *How to determine the amount of your cost increase on mill products and pig iron.* To make the calculation of an adjustment on these manufacturing materials as simple as possible, two appendices have been added to this regulation.

(a) *Purchases from mill suppliers.* Appendix A lists the authorized ceiling price increases for steel, aluminum, brass and copper wire-mill products, and for pig iron. If you purchase any of these materials directly from the manufacturer, you may reflect in your adjustment the full amount of the listed increases. This regulation does not require (with one exception later noted) manufacturers of any of these materials to notify their customers of their increases because it is presumed they have been selling at their old ceilings and will take the listed increases in full. You may, therefore, make your adjustment immediately to reflect the appropriate amount of the listed increases.

(b) *Purchases from warehouses.* If you normally purchase any steel products from a warehouse you must turn to Appendix B. That appendix lists the authorized warehouse markups for the steel products listed in Appendix A. In order to obtain the adjustment to which you are entitled you add to the increase listed in Appendix A the warehouse markup listed in Appendix B.

Whether you are entitled to take the warehouse increase on a particular material depends on where you obtained your supply of that material during your last complete fiscal year ending not later than July 31, 1952. If during that period you bought 75 percent or more (by weight) of that material directly from mills, you may take only the increase listed in Appendix A.

If you bought more than 25 percent (by weight) of that material from warehouses, you must use the average increase weighted on the basis of the amount bought from each class of supplier during your last complete fiscal year. You calculate this average increase as follows:

(1) Multiply the physical amount bought from mills by the increase listed in Appendix A.

(2) Multiply the physical amount bought from warehouses by the warehouse increase (Appendix A increase, plus mark-up factor listed in Appendix B).

(3) Add the results obtained under (1) and (2).

(4) Divide the result under (3) by the total quantity of the material bought from both sources. This gives you the amount of the cost increase you are permitted to pass through in making your adjustment.

(c) *Increases not listed in appendices.* If you are unable to find the authorized increase for a steel-mill, aluminum-mill brass-mill, copper wire-mill or pig iron product in the appendices you should write to your supplier. He is legally required to inform you of his authorized ceiling price increase within 14 days of the time he receives your inquiry.

Example 1. You are a manufacturer of steel stampings, and during your last fiscal year you purchased 100 percent of your cold-rolled carbon steel sheet from a warehouse located in the New York metropolitan area. The increase for carbon steel sheet as shown in Appendix A is $4.50 a ton. The warehouse markup as shown in Appendix B is 46 percent. 46 percent of $4.50 is $2.07. Applying this markup to the mill price increase of $4.50 ton, gives you $6.57 per ton as the amount you may use in calculating your permitted increase for steel stampings.

Example 2. The facts are the same as above except that you purchased only 20 percent of your steel sheet from a warehouse, and the rest from a steel mill. You may only use $4.50 per ton as your cost increase for steel sheet.

Example 3. The facts are the same except that you purchased 60 percent of your steel sheet from a warehouse and 40 percent from a mill. Assuming your total purchases were 10,000 tons, your calculations would be as follows:

	Tons purchased	Cost increase per ton	Total cost increase
Mill	4,000	$4.50	$18,000
Warehouse	6,000	6.57	39,420
Total	10,000		57,420

Increase per ton is $57,420 divided by 10,000 tons, or $5.74 per ton.

SEC. 7. *How to determine the amount of your cost increase on manufacturing materials made from mill products or pig iron.*—(a) *Where 75 percent or more of the particular manufacturing material was bought from one class of supplier during your last complete fiscal year ending not later than July 31, 1952.* You may reflect in your adjustment for a particular manufacturing material the increase in his selling price above his old ceiling which your largest regular supplier has taken under this regulation. You may not make an adjustment until (1) you have received a shipment from your largest regular supplier, in an amount equal to a normal order, at a price above his old ceiling; and (2) he has given you appropriate notification of his increase, as required by section 13. However, if you are unable to obtain delivery of that particular material from

your largest regular supplier, and you have obtained a shipment in an amount equal to a normal order from another supplier of the same class, you may make your adjustment on the basis of the increase in his selling price above his old ceiling (for sales to the class of purchaser to which you belong) taken by that supplier.

(b) *Where less than 75 percent of the particular manufacturing material was bought from one class of supplier during your last complete fiscal year ending not later than July 31, 1952.* You have a choice of two methods:

(1) You may reflect in your adjustment the increase in his selling price above his old ceiling taken by the *manufacturing* supplier from whom you bought the largest amount of the particular material during your last fiscal year ending not later than July 31, 1952. You may not make an adjustment until (i) you have received a shipment from your largest manufacturing supplier in an amount equal to a normal order, at a price above his old ceiling; and (ii) he has given you appropriate notification of his increase as required by section 13. However, if you are unable to obtain delivery of the particular material from your largest manufacturing supplier, and you have obtained shipment in an amount equal to a normal order from another manufacturing supplier, you may make an adjustment on the basis of the increase in his selling price above his old ceiling (for sales to the class of purchaser to which you belong) taken by that supplier.

(2) You may reflect in your adjustment an average increase weighted on the basis of the amount of the material bought from each class of supplier during your last complete fiscal year, ending not later than July 31, 1952, calculated as follows:

(i) Multiply the physical amount bought from all manufacturing suppliers, by the increase taken by your largest manufacturing supplier.

(ii) Multiply the physical amount bought from all distributors, by the increase taken by your largest distributor supplier. (The term "distributor" includes warehouse, wholesaler and jobber.)

(iii) Add the results of (i) and (ii). Divide this sum by the total quantity of the manufacturing material bought from all sources. This gives you the average increase you are permitted to pass through in making your adjustment.

NOTE: You may not make an adjustment under this method until *first*, you have received a shipment from your largest manufacturing supplier *and* from your largest distributor supplier, each in an amount equal to a normal order, and at a price above his old ceiling; and, *second*, you have received appropriate notification of increases as required by section 13. However, if you are unable to obtain delivery of the particular material from either supplier, and you have obtained shipment in an amount equal to a normal order from another supplier of the same class, you may make an adjustment on the basis of the increase in his selling price above his old ceiling (for sales to the class of purchaser to which you belong) taken by that supplier.

SEC. 8. *How to calculate an adjusted ceiling price for an individual commodity.* To calculate an adjusted ceiling price for an individual commodity you must do the following:

(a) List the physical amount, used in the production of one unit of the commodity, of each "manufacturing material" for which you are entitled to make an adjustment, and for which you have decided to make one. The "unit" of the commodity is the one in which you customarily quote your price, for example, each, dozen, gross, thousand, lb., ton.

(b) List the dollar-and-cent amount of the cost increase which you are permitted to reflect for each of the materials listed in (a). The increase should be shown on the basis of the unit in which you normally buy the materials, for example, each, dozen, gross, thousand, lb., ton.

(c) Multiply the physical amount of each material listed in (a) by its cost increase listed in (b). This gives you the adjustment to which you are entitled for each manufacturing material.

(d) Add up the individual increases found in (c). This gives you the dollar-and-cent figure representing your total adjustment. You add this to the ceiling price of the commodity, to its largest buying class of purchaser, in order to obtain your adjusted ceiling price. For sales to other classes of purchasers you apply your customary differentials, between classes of purchasers. You must continue to use the same terms and conditions of sale.

NOTE: You may not calculate an adjusted ceiling price for any individual commodity which belongs to a group of commodities for which you have determined an adjustment factor under section 9.

Example: You are producing an electric fan. You purchase carbon-steel sheets direct from the steel mill, and the armature and bearings from parts manufacturers. Prices for other items in your bill of materials were not raised above suppliers' old ceilings.

EXAMPLE: ELECTRIC FAN

Purchased materials	Unit of purchase	Physical amounts required per generator	Increase shown in App. A	Suppliers' old ceiling	Suppliers' new selling price	Increase in suppliers' selling price over old ceiling	Increase per unit of commodity
Carbon steel sheet	Tons	4 pounds	$4.50/ton				$0.009
Armature and field	Unit	1		$3.00	$3.30	$.30	.30
Bearings	do	2		1.00	1.06	.06	.12
Total permitted increase							.429

SEC. 9. *How to calculate a group factor.* (a) You may calculate a group factor for any unit of your business not larger than a plant. You may use a unit smaller than a plant if you keep accounting records adequate to permit you to make the necessary calculations. You may calculate a group factor for your entire business if you operate in a single plant.

If you choose this method, you must use it for all commodities made in the unit of your business which you have used. You cannot make a section 8 adjustment for any commodity produced in that unit of your business.

(b) List the physical amount used by the unit of your business during your last complete fiscal year ending not later than July 31, 1952, of each manufacturing material for which you are entitled to make an adjustment, and for which you have decided to make one.

(c) List the dollar-and-cent amount of the cost increase which you are permitted to reflect for each of the materials listed in (b). The increase should be shown on the basis of the unit or quantity in which you normally buy the material, for example, each, dozen, gross, thousand, lb., ton.

(d) Multiply the physical amount of each material listed in (b) by its price increase found in (c).

(e) Add up the individual increases. This gives you the total materials cost increase which you are permitted to reflect.

(f) Divide the result under (e) by the net sales of all commodities produced in that unit of your business during your last complete fiscal year ending not later than July 31, 1952, adjusted (as indicated below) for changes in your finished-goods inventory and for transfers to other units of your business. (You must use the same fiscal year used in paragraph (b)). The resulting percentage is your group factor.

(1) The inventory adjustment is made as follows:

(i) Find the values at the beginning and at the end of your last complete fiscal year, of your finished-goods inventory for the unit of your business. You must use the value as shown on the records which you keep for tax purposes.

(ii) Add the value of your end-of-the-year inventory to your net sales.

(iii) From the total under (ii) subtract the value of your beginning-of-the-year inventory. This gives you the figure by which you divide the result under (e).

(2) You must include in net sales the value of any commodity or material transferred from that unit to another unit of your business. The value shall be that shown on your records. If your records do not show a value, you may not use that unit for making your calculations.

(3) To obtain an adjusted ceiling price for a commodity included in the unit of your business you multiply the ceiling price of the commodity, to its largest

buying class of purchaser, by the group factor. This gives you a dollar-and-cent figure which you add to the ceiling price of the commodity, to its largest buying class of purchaser, to obtain your adjusted ceiling price. For sales to other classes of purchasers you apply your customary differentials between classes of purchasers. You must continue to use the same terms and conditions of sale.

NOTE: You may not apply the group factor to any commodity which does not contain at least one of the materials listed in paragraph (b) even though that commodity is made by the unit of your business for which the factor was determined.

Example: You are producing a line of refrigerators in a separate unit of your business and you wish to calculate a group factor to be applied to the ceiling prices of all the refrigerators produced in that unit. You buy cold-rolled sheet steel and stainless steel direct from the mill, and you purchase your refrigeration units and miscellaneous accessories from parts manufacturers. In such a case your calculations might take the following form:

Purchased materials	Physical amounts used in last complete fiscal year	Permitted increase	Total permitted increase for materials
Cold rolled sheet steel	3,000 tons	$4.50 per ton	$13,500
Refrigerating unit:			
¼ hp	80,000 units	$8.50 per unit	680,000
¼ hp	20,000 units	$15.50 per unit	310,000
Stainless steel	500 tons	$27.00 per ton	13,500
Insulation material (no pass-through permitted by this GOR)			
Miscellaneous steel parts:			
Handles	100,000 units	$0.013 per unit	1,300
Hinges	16,000 dozen	$0.10 per dozen	1,600
Nuts	1,000 pounds	$0.05 per pound	50
Bolts	1,000 pounds	$0.05 per pound	50
			(A) 1,020,000

Adjusted net sales calculated as follows:		
Sales 1951	$19,500,000	
Plus ending inventory of finished goods	2,500,000	
	22,000,000	
Less beginning inventory of finished goods	2,000,000	
Adjusted net sales		(B) $20,000,000

Divide total dollar increase (A) by adjusted net sales (B) $\frac{1,020,000}{20,000,000}$ = 5.1 percent

You use the 5.1 percent to adjust your old ceiling prices for all commodities made in that unit.

Commodities	Old ceiling price	5.1% × old ceiling price (amount which may be passed through)	New ceiling price
Semi DeLuxe 8.2 cubic feet	$152.91	$7.80	$160.71
Stripped 8.1 cubic feet	137.18	6.99	144.17
Stripped 6.1 cubic feet	117.11	5.97	123.08

SEC. 10. *Option to propose an alternate method for calculating adjusted ceiling prices.* If you find that you cannot or are unable without undue burden to calculate adjusted ceiling prices under either section 8 or section 9, you may propose an alternate method. An alternate method will be approved only where there is a clear showing that use of section 8 or section 9 would be impossible or unduly burdensome.

You should submit your proposed method in writing to the Office of Price Stabilization, Washington 25, D. C. Your proposal should be identified as an "Application under Section 10 of GOR 35" and must include the following:

(a) A statement of the reasons why the use of sections 8 and 9 would be impossible or unduly burdensome.

(b) A detailed step-by-step description of the method you propose.

(c) A clear demonstration, including the use of representative commodities made by you, showing that the proposed method will produce substantially the same results as sections 8 and 9.

The Director of Price Stabilization may approve your proposal in whole or in part, modify or reject it. Unless and until you have received written approval from him you may not use your proposal.

SEC. 11. *Subsequent adjustments.* You may wish to make more than one adjustment in order to reflect cost increases, not reflected in your previous adjustment, to which you are entitled under this regulation. If you have calculated an individual-commodity adjustment under section 8, you may simply add the additional increases, calculated under section 8, to your previously adjusted ceiling price.

If you have calculated a group adjustment factor under section 9, there are two ways of obtaining a new group factor. First, you may make the calculations prescribed by section 9, using *both* the old increases, reflected in your first group factor, and the additional increases which you now wish to reflect. Second, you may calculate a separate factor under section 9, representing only the additional increases not reflected in your first adjustment. This separate factor must then be added to your original group factor to give you your new group factor. Whether you use the first or the second method, the new group factor must be applied to the *unadjusted* ceiling prices of the commodities included in the group.

You may not change the unit of your business to which the group factor applies. The new group factor must apply to the same unit to which the old factor applies. However, group factors may be applied to new commodities brought out in the unit of your business to which the factor applies. This is spelled out in section 12.

SEC. 12. *Adjustment of ceiling prices for new, modified, and minor-change commodities.* You may adjust under this regulation ceiling prices established under the new commodity provisions of the basic regulation covering your commodities. The way you make your adjustment will depend on how the ceiling price of the new commodity is established.

(a) *Ceiling prices established by a comparison technique.* The ceiling price of any "modified" commodity, any "minor-change" commodity, or any other new commodity which is established by reference to the *unadjusted* ceiling price of a comparison commodity may be adjusted in one of two ways.

(1) If the new commodity is made in a unit of your business for which you have calculated a group factor under section 9, you may apply that factor to the ceiling price of the new commodity.

(2) If the new commodity is not made in a unit of your business for which you have calculated a group factor, you may make an individual commodity adjustment under section 8.

Example: You have calculated a group factor of 2 percent under section 9 for the unit of your business in which you produce laundry washers and driers. You now introduce a new model drier, Model Z, which is similar to Models X and Y, models currently in your line. The *unadjusted* ceiling prices of Models X and Y under CPR 22 are $100 and $110 respectively. (Their adjusted ceiling prices under this regulation are $102 (100 × 102 percent) and $112.20 (110 × 102 percent) respectively.) You determine the ceiling price of the new commodity under section 4 of CPR 161. In doing so you use as the ceiling prices of Models X and Y their unadjusted ceiling prices of $100 and $110 respectively. Your unadjusted ceiling price for Model Z under section 4 of CPR 161 is $105. You apply the 2 percent group factor to this ceiling price. The result is $107.10. This is your adjusted ceiling price for your Model Z drier.

(b) *Ceiling prices established by reference to competitors' prices—(1) Where established before September 10, 1952.* (i) If the commodity is made by a unit of your business for which you have calculated a group factor under section 9, you may apply that factor to the ceiling price of the new commodity.

(ii) If the new commodity is not made by a unit of your business for which you have calculated a group factor, you may make an individual commodity adjustment under section 8.

(2) *Where established after September 10, 1952.* There are two alternatives:

(i) If your competitor makes an adjustment, under this regulation of the ceiling price which you "borrowed," you may make a comparable adjustment of your ceiling price.

(ii) You may apply in writing to the Office of Price Stabilization, Washington 25, D. C., for an adjustment of your ceiling price. Your application must be identified as an "Application under section 12 (b) (2) 08 GOR 35" and must include a statement of the amount of the increase in the cost of your manufacturing materials resulting from increases in the cost of products listed in Appendix A, or of increases above suppliers' old ceiling prices of commodities processed from such products. You can combine this application with the initial report that may be required in order to establish the ceiling price under your basic regulation. In other words, you may request that increased steel, copper and aluminum costs be reflected immediately.

(c) *Ceiling prices established by letter order*—(1) *Where established before September 10, 1952.* (i) If the commodity is made by a unit of your business for which you have calculated a group factor under section 9, you may apply that factor to the ceiling price of the new commodity.

(ii) If the new commodity is not made by a unit of your business for which you have calculated a group factor, you may make an individual commodity adjustment under section 8.

(2) *Where established after September 10, 1952.* The letter order establishing your ceiling price will indicate whether and how you may make an adjustment. The order will also indicate the unadjusted ceiling price of which you advise your purchasers, in compliance with the notification provision.

(d) *Ceiling prices established by a manufacturer's individual formula.* You may adjust a ceiling price calculated by an individual formula established under the basic regulation covering your commodities. There are two ways in which such a ceiling price can be adjusted.

(1) If the commodity is made by a unit of your business for which you have calculated a group factor under section 9, you may apply that factor to the ceiling price of the new commodity.

(2) If the new commodity is not made by a unit of your business for which you have calculated a group factor, you may make an individual-commodity adjustment under section 8.

SEC. 13. *Notification of unadjusted ceiling prices*—(a) *Mandatory notification by manufacturers who adjust their ceiling prices.* In order to enable manufacturers who buy from you to pass through the increase which you have put into effect, it is essential that they be able to determine the amount of the increase in your selling price above your unadjusted ceiling price. The first time you deliver a commodity at a price exceeding your unadjusted ceiling you must notify any purchaser who is himself engaged in manufacturing operations or who normally resells to manufacturers.

It is recommended that you inform your purchaser of your unadjusted ceiling price on the first invoice on which you bill him at a price exceeding that old ceiling. He is then able to determine the amount he can pass through, not merely on the first increase you take over your old ceiling but also for all subsequent increases, in case you do not immediately put into effect the full amount of the adjustment to which you are entitled. However, you may, if you wish, use any other method of notifying him that is more convenient for you. For example, you may send your purchaser a single list showing the unadjusted ceiling prices of all the commodities which he buys from you, for which you are going to charge more than the unadjusted ceiling price. Again, you may specify the dollar-and-cent amount or the percentage by which your selling price exceeds your unadjusted ceiling price; further notification would, of course, then, be necessary in the event you make later adjustments and increase your selling price.

(b) *Notification by distributors and by manufacturers of mill products where requested by buyers.* (1) Manufacturers who buy from distributors have the right to request notification of the amount of the increase in selling price in excess of the distributor's old ceiling. This is the amount by which the distributor's supplier has increased his selling price over his old ceiling, because of the steel, copper and aluminum increases, plus the markup taken by the distributor on the amount of his supplier's increase.

(2) In some cases buyers of steel-mill, aluminum-mill, brass-mill, copper wire-mill products and of pig iron may be unable to determine the amount of their suppliers' increase from the information in the appendices. They must, then, turn to their suppliers for the required information.

(3) Where notification is requested, an answer must be given within 14 days after receipt of the request.

SEC. 14. *Integrated manufacturers and transferred materials.* This section deals with a manufacturing material which you produce in one unit of your business and transfer to another unit of your business where it is used in producing a commodity whose ceiling price you wish to adjust. Such a manufacturing material (which is referred to as a "transferred material") may also be sold to another person.

You may make an adjustment for the cost increase to which you are entitled, at any stage of processing where it is convenient for you to do so. However, regardless of the stage at which you decide to make your adjustment, you may not make an additional adjustment at a subsequent stage, for the same material, but must simply pass through the adjustment made at the earlier stage. Therefore, the adjustment permitted on one processed commodity can in no event exceed the increases on the materials going into it. Appropriate records must be kept, indicating how adjustments for transferred materials were made between different units of your business.

No adjustment may be taken under this regulation on sales of any of the products listed in Appendix A. However, if you manufacture such products and are also engaged in further processing—using these products as manufacturing materials—you may adjust the ceiling price of the processed commodity to reflect the increase for the manufacturing material listed in Appendix A.

You will ordinarily find it simplest to base your adjustment on the increase, shown in Appendix A, for the manufacturing material which is at the most advanced stage of fabrication.

Example 1. You are a manufacturer of steel wire, which you produce from steel rod which you purchase. Steel wire is included in Appendix A, and consequently you may not adjust your price for wire under this regulation to reflect the increased cost of rod. (You take the increase under Revision 1 of SR 100 to the GCPR.)

Example 2. You are a manufacturer of aluminum houseware, which you produce from aluminum sheet which you roll yourself from pig aluminum which you purchase. You also sell some sheet. You may *not* increase the price of sheet under this regulation, since sheet is listed in Appendix A. However, you *may* adjust the price of the houseware to reflect the increase in the ceiling price of sheet as shown in Appendix A.

NOTE: To find the permitted adjustment for the houseware you will find it simpler and more advantageous to base your calculations on the increase shown for sheet in Appendix A, rather than on that shown for pig.

Example 3. The facts are the same as in Example 2, except that you are a fully integrated producer, and manufacture your own pig. You may still have your adjustment for houseware on the increase shown for sheet in Appendix A, rather than on that shown for pig, since sheet represents the most advanced stage of fabrication listed in Appendix A.

SEC. 15. *Optional method for determining a uniform adjusted ceiling price for a commodity manufactured in two or more plants.* If the commodity whose ceiling prices you are adjusting is manufactured in more than one of your plants, and is customarily sold at a uniform price, but in adjusting the ceiling price for each plant different ceiling prices result, you may compute a uniform ceiling price. To do this, you first determine the adjusted ceiling price for each plant and multiply it by the number of units of the commodity sold from that plant during your last complete fiscal year. You then divide the total dollar amount of such sales from all plants by the total number of units sold from all plants. The resulting figure is your uniform ceiling price for the commodity.

Example. The same commodity is produced in two plants. Because of differences in your materials-cost changes, each plant has different adjusted ceiling prices. The sales during your last fiscal year also were different. Assuming the figures shown below, proceed in the manner indicated.

	Adjusted ceiling price	Sales in units for your last fiscal year	Sales at adjusted ceiling prices
Plant A	$2.00	1,500	$3,000
Plant B	2.10	1,000	2,100
Total		(A) 2,500	(B) 5,100

Divide the total of sales at adjusted ceiling prices for both plants (B) by the total number of units sold by both plants (A) $\frac{5,100}{2,500}$=$2.04.

$2.04 is the uniform adjusted ceiling price for sales from both plants.

SEC. 16. *Excise, sales or similar taxes.* (a) *Where the tax is included in your selling price.* (1) If your unadjusted ceiling price for a commodity includes any excise, sales or similar tax which is not separately stated, you must first ascertain the amount of such tax and exclude it from your unadjusted ceiling price. Your unadjusted ceiling price, with such tax so excluded, may then be used in making any appropriate computations for determining your adjusted ceiling price. After completing the computations, you may then add on the appropriate amount of such tax for inclusion as part of your adjusted ceiling price.

(2) If subsequent to the establishment of an adjusted ceiling price which includes any excise, sales or similar tax, the amount of such tax is reduced or eliminated, you must recompute and reduce your ceiling price to reflect the appropriate amount of the reduction in or elimination of such tax.

(3) If, subsequent to the establishment of any adjusted ceiling price, any excise, sales or similar tax is first imposed or any such tax which had been included in your ceiling price is increased, you may recompute and increase your ceiling price to reflect the appropriate amount of such new tax or the increase in such tax.

(b) *Where the tax is separately stated and collected.* If your unadjusted ceiling price for a commodity did *not* include any excise, sales or similar tax you may in addition to your adjusted ceiling price, determined under this regulation, collect the amount of any such tax paid as such by you. In the case of an increase in any excise, sales or similar tax or any new such tax which is not effective until after you make your adjustment, you may, in addition to your ceiling price, if not prohibited by the tax law, state separately and collect the amount of such increase or new tax actually paid as such by you. A tax once stated separately from your ceiling price may not thereafter be included in your ceiling price under this regulation.

SEC. 17. *Rounding.* Cost increases on particular manufacturing materials, and group factors calculated under section 9 may only be rounded downwards. Adjusted ceiling prices may be rounded in the manner prescribed in the basic regulation applicable to the particular commodity.

SEC. 18. *Further action by the Director.* The Director of Price Stabilization may issue supplementary regulations to this general overriding regulation or otherwise take special action to adjust the ceiling prices of particular commodities or industries to reflect the higher costs of steel, pig iron, copper and aluminum. This will be done wherever the procedure provided by this general overriding regulation is not appropriate because of the practices of the particular industry, or where, for any other reason, action specially tailored to the industry is necessary or appropriate.

Where specific provision is made for an industry in a tailored regulation, adjustments permitted under this regulation will no longer be required and, consequently, the privilege of making them may be withdrawn.

SEC. 19. *Applicability of other OPS regulations to you.* All the provisions of the regulations under which your ceiling prices are presently established continue to be applicable to you except to the extent that they are expressly inconsistent with this regulation. Wherever such provisions refer to ceiling prices "established under this regulation," or use equivalent language, your ceiling prices as adjusted under this general overriding regulation are included. This means that you will continue to look to these regulations to find, for example, what records and reports you are required to keep, in addition to those required by this regulation, or what acts are prohibited.

SEC. 20. *Records and reports.*—(a) *Record-keeping requirements.* In addition to the records and reports required by other OPS regulations applicable to you, you must prepare and preserve for the life of the Defense Production Act of 1950, as amended, and for two years thereafter, all records necessary to determine whether you have correctly computed your ceiling price adjustment under this regulation. You must preserve your suppliers' notifications to you of their old ceiling prices, and copies of invoices, paid bills or similar data to show the materials costs you used in computing a ceiling price adjustment under this regulation. The records to be preserved under this paragraph include appropriate work sheets.

(b) *Reports.* The Director of Price Stabilization may from time to time require information or reports subject to the approval of the Bureau of the Budget, in accordance with the Federal Reports Act of 1942.

SEC. 21. *Definitions.* The definitions in the basic regulation covering your commodities shall apply to all terms used in this regulation, except where one of the following definitions applies, or where the context requires otherwise.

Class of supplier. There are two classes of suppliers: manufacturers and distributors. A supplier who manufactures the commodity being sold falls into one class, a supplier who merely resells the commodity falls into the second class.

Largest regular supplier. This means a regular supplier of yours from whom in the most recent representative period you have purchased the largest quantity of a particular material. If you are purchasing a material for the first time your first supplier may be regarded as your "largest regular supplier."

Old Ceiling price. This means your unadjusted ceiling price under the regulation which covers the commodity whose ceiling price you are adjusting under this regulation.

Effective date. The effective date of this General Overriding Regulation is September 10, 1952.

NOTE: The record-keeping and reporting requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

APPENDIX A

(All percentages apply to base prices plus extras in effect on July 1, 1952, except as otherwise noted. Where base prices only are noted these are base prices in effect on July 1, 1952.)

	Per net ton
A. Carbon steel products:	
(1) Ingots	$2.00
(2) Blooms, billets and slabs—forging	4.50
(3) Blooms, billets, and slabs—rerolling	3.00
(4) Blooms and billets—shell	4.50
(5) Seamless pipe and tube blooms and billets	3.00
(6) Skelp	4.00
(7) Tube rounds	5.50
(8) Wire rods	4.50
(9) Structural shapes, including bearing piles	4.00
(10) Sheet piling	4.50
(11) Plates—sheared and UM	4.00
(12) Plates—floor	4.00
(13) Light rails—60 pounds or under per linear yard	5.00
(14) Standard rails—over 60 pounds per linear yard	3.50
(15) Track spikes	10.00
(16) Joint bars	4.50
(17) Tie plates	5.50
(18) Hot-rolled bars and special bar sections	5.00
(19) Concrete reinforcing bars—unfabricated	5.00
(20) Cold-finished bars	7.50
(21) Tin plate—electric, per base box	.25
(22) Tin plate—hot dip, per base box	.25
(23) Black plate, per base box	.25
(24) Terneplate, per base box	.25
(25) Hot-rolled sheets	3.50
(26) Cold-rolled sheets	4.50
(27) Enameling sheets	5.50
(28) Galvanized sheets, including formed roofing and siding and valley, ridge roll, and flashing	5.50
(29) Sheets—long terne	5.50
(30) Sheets—all other coated	5.50
(31) Electrical sheets—pole grade	3.50
(32) Electrical sheets—field grade	12.00
(33) Hot-rolled strip	4.50
(34) Hoops, baling bands and cotton ties	8.00
(35) Standard and line pipe:	
(i) Buttweld:	
Black P. E. (3¼ pts.)	6.50
Black T & C (3½ pts.)	7.00
Galvanized P. E. (3½ pts.)	7.00
Galvanized T & C (3¾ pts.)	7.50
(ii) Seamless lapweld end electric weld black:	
2"—4" Nom. P. E. (5½ pts.)	10.50
2"—4" Nom. T & C (5½ pts.)	11.00
5" Nom. and over P. E. (3 pts.)	6.00
5" Nom. and over T & C (3¼ pts.)	6.50
(iii) Seamless lapweld and electric weld galvanized:	
2"—4" Nom. P. E. (5½ pts.)	11.00
2"—4" Nom. T & C (5¾ pts.)	11.50
5" Nom. and over P. E. (3¼ pts.)	6.50
5" Nom. and over T & C (3½ pts.)	7.00
(36) Oil country goods—seamless electric weld and lapweld:	
(i) Casing F-25	6.50
(ii) Casing H-40	6.50
(iii) Casing J-55	6.50
(iv) Casing N-80 (carbon)	9.00
(v) Casing Deepwell	9.00

A. Carbon steel products:	Per net ton
(36) Oil country goods—seamless electric weld and lapweld—Con.	
(vi) Tubing N-40	$11.00
(vii) Tubing F-25	11.00
(viii) Tubing J-55	11.00
(ix) Drill pipe—grade D	11.00
(x) Drive pipe	6.50
(xi) Miscellaneous tubular couplings	33.00
(37) Drawn wire—Acme spring, basic and Bessemer, box binding, buckle, con key, chain, check power, clothes pin, coat hanger, scrapless nut, link, split rivet, tubular rivet, tuning pin, wood screw, welding, strand wire, tying wire, wool wire, pear shape, square, nail wire, pump, stapling (bright all other), bale tie cross head wire, bale tie wire, baling wire, merchant quality, galvanized annealed premier spring	7.50
(38) Nails—cut and wire	9.00
(39) Staples	8.00
(40) Wire tacks	22.00
(41) Woven fence	9.00
(42) Welded fence	14.00
(43) Wire netting	14.00
(44) Fence posts, commonly produced by steel mills	8.00
(45) Wire bale ties—coil and loop	9.00
(46) Barbed and twisted wire	8.00
(47) Wire reinforcing mesh—welded precast	14.00
(48) All other wire reinforcing mesh	7.50
(49) Chain link fabric	10.00
(50) Ornamental fence and trellis, commonly produced by steel mills	8.00
(51) Tubular fence posts and fence rails, commonly made by steel mills	7.00
(52) Wire rope and cord	31.00
(53) Guard rail strand	15.00
(54) Strand (other than guard rail)	16.00
(55) Wire loops	8.00
(56) Clothes line	10.00
(57) Cold rolled strip, low carbon	9.00
(58) Cold rolled strip, high carbon	17.00
(59) Cold rolled strip, specialties—bag tie, band saw steel, bobby hair pin steel, boning steel, box band, butcher blade steel, camera main spring and camera setter steel, cleat steel, carpet blade steel, diaphragm steel, doctor blade steel, door check steel, feeler and clearance gauge steel, fish tape steel, flapper valve, gong bell, heddle and drop steel, knife and scraper blade steel, lock spring steel, pen steel, pendulum spring steel, pile steel, piston ring and piston ring expander steel, reed steel, rule steel for rulers, sash balance steel, scoring rule steel, side link chain steel, sinker steel, snap spring steel, square blade steel, stitching flat, surgical blade steel, tape line steel, type bar steel, umbrella strip, vibrator reed steel, window regulator steel, tempered strip	31.50
	Percent
(60) Seamless and welded mechanical and pressure tubing	[1] 5.5
(61) Drawn wire—all drawn wire other than that listed above in subparagraph (37)	[1] 4.7
(62) Steel hardware cloth	[1] 4.7
(63) Steel screen cloth	[1] 4.7
(64) Wrought iron	[1] 4.7
(65) All carbon steel products not otherwise listed in this section	[1] 4.7

B. High strength, low alloy steel products:	Per net ton
(1) Ingots, blooms, billets, and slabs	$4.50
(2) Hot-rolled bars	7.50
(3) Structural shapes	6.00
(4) Plates	6.00
(5) Hot-rolled strip	7.00
(6) Hot-rolled sheets	5.50
(7) Cold-rolled sheets	7.50
(8) Galvanized sheets	8.50
(9) Cold-rolled strip	15.00
C. Products in SAE, NES, and other structural alloy grades of steel:	
(1) Ingots	3.00
(2) Blooms, billets, and slabs	6.00
(3) Structural shapes	7.50
(4) Plates	10.00
(5) Hot-rolled bars	7.50
(6) Cold-finished bars	12.00
(7) Hot-rolled sheets	12.00
(8) Cold-rolled sheets	12.00
(9) Electrical sheets—all alloy grade	12.00
(10) Hot-rolled strip	12.00
(11) Cold-rolled strip—other than razor	28.00
(12) Cold-rolled strip—razor	90.00
(13) Wire	12.00
(14) Tubing N-80	14.00
(15) Drill pipe, Grade E	12.37
(16) Casing, N-80 (Alloy)	9.00
(17) Mechanical tubing:	*Percent*
(i) Schedule J—hot	[1] 5.0
(ii) Schedule J—cold	[1] 5.0
(iii) Schedule J—bearing—hot	[1] 6.0
(iv) Schedule J—bearing—cold	[1] 6.0
(v) Schedule K—aircraft—cold	[1] 3.0
(18) Pressure tubing:	
(i) Schedule B—2—hot	[1] 4.7
(ii) Schedule B—2—cold	[1] 4.7
(iii) Schedule B—3—hot	[1] 5.0
(iv) Schedule B—3—cold	[1] 5.0
D. All other unlisted SAE, NES structural alloy grades, carbon tool, alloy, or alloy tool steel mill products	4.7
E. Stainless steel mill products	4.7
F. Aluminum pig, aluminum alloy pig, aluminum ingot	1 cent per pound
G. Aluminum mill products:	
(1) Alloy ingot (including billets)	5
(2) Sheet, coil, plate, blanks, circles and foil	5
(3) Wire, rod, and bar (including structurals)	5

[1] Of base price only.

G. Aluminum mill products—Con.	Percent
(4) Extrusions (including shapes, tubing, and pipe)	5
(5) Tubing, drawn and welded	5
(6) Electrical conductor cables, bare (ACSR and all aluminum)	5
(7) Roofing and siding not fabricated beyond the forming operation	5
(8) Aluminum powder and paste	5
(9) Roll formed shapes	5
H. Brass mill products:	
(1) Free cutting brass rod	[1] 1.22
(2) New plate, sheet, strip, rod, bar tube, pipe, extrusion, and anode or other shape made from copper or copper base alloy	[1] 3.84
I. Certain wire mill products:	
(1) Standard insulated wires and cables, standard wiring harnesses and assemblies, and standard power supply cords and cord sets	[1] 4.25
(2) Bare and magnet wire and cable	[1] 4.25
(3) Weatherproof wire and cable:	
(i) When sold by foot	[1] 4.25
(ii) When sold by the pound	[2] 3.25
J. Pig Iron (other than that covered by GCPR, SR 38):	*Per ton*
(1) Containing a maximum of 4.9 percent silicon	$2.50
(2) Containing from 5.00–17.00 percent silicon	3.00

[1] Cents per pound.
[2] Cents per pound of contained copper less 2.00 cents per pound of contained zinc.
[4] Cents per pound of copper contained.
[5] Per 100 pounds.

Appendix B

You may add the following applicable percentage markups to the steel-mill product increases authorized in Appendix A only when you purchase the following products from warehouse resellers. The factors set forth below may not be used by you for products which you purchase directly from the mill producer. For such products you may apply only the increase authorized in Appendix A. The direct mill shipments referred to in this Appendix B are those shipments made directly from the mill for the account of a warehouse reseller.

A. Prime Industrial Steel Products.

1. Purchases from warehouse stock—(The geographic location refers to the area in which the warehouse reseller from whom you purchase is situated).

	Metropolitan area, New York	State of California	State of Texas	States of Oregon and Washington	All other
	Percent	*Percent*	*Percent*	*Percent*	*Percent*
Standard structural shapes	55	47	56	51	52
Junior channels	55	60	56	51	52
Junior beams	55	60	56	51	52
Wide flange beams	57	47	65	51	52
H. R. carbon bars and bar shapes	52	41	56	50	45
H. R. carbon plates	55	46	53	52	50
Floor plates	47	56	44	50	43
Abrasion resisting, all products	64	60	60	64	60
H. R. carbon sheets	56	46	57	52	51
H. R. carbon strip	59	50	63	56	54
C. R. sheets	46	47	43	46	43
C. R. and H. R. electrical (silicon) sheets, all grades	56	56	56	56	56
Enameling sheets	52	52	52	52	52
C. R. strip—low carbon	48	48	48	48	48
High tensile low-alloy, all products	48	50	48	50	48
C. F. carbon bars	38	31	59	46	33
Reinforcing bars, unfabricated	52	41	56	50	45
Tin plate, black plate, and short ternes	45	45	45	45	45
Galvanized sheets, hot-dipped	50	50	50	50	50
Galvanized, electric coated sheets and other related zinc coated sheets	50	50	50	50	50

	Metropolitan area, New York	State of California	State of Texas	States of Oregon and Washington	All other
	Percent	*Percent*	*Percent*	*Percent*	*Percent*
Terne coated long sheets	50	50	50	50	50
Alloy bars, H. R.	50	50	50	50	50
Alloy bars, C. F.	50	50	50	50	50
Alloy plates	50	50	50	50	50
Tool steel sheets (approximately 1.00 percent carbon grades)	45	45	45	45	45
Structural tubing (hot-rolled, butt-welded)	54	54	54	54	54
"4130" aircraft sheets:					
0.1875 and heavier	40	40	40	40	40
0.160 and lighter	40	50	40	40	40
"1020 grade" aircraft sheets	40	50	40	40	40

Stainless sheets, Stainless bars and angles, Stainless plates, Stainless pipe and tubing } No additional markup on the mill net price.

Boiler tubes, seamless and welded:
Standard gauge — No additional markup on the mill net price.
Heavy gauge in the following sizes:
1 inch–2½ inch OD 11-gauge and heavier.
2½ inch–3 inch OD 10-gauge and heavier.
3¼ inch–3½ inch OD 9-gauge and heavier.
4 inch–4½ inch OD 8-gauge and heavier.
5 inch–5½ inch OD 7-gauge and heavier.
6 inch OD 5-gauge and heavier.
6¼ inch–6½ inch OD ⅝₂ inch and heavier.

Quantity:	*All areas (percent)*
20,000 to 39,999 pounds or feet	35
20,000 to 29,999 pounds or feet	40
10,000 to 19,999 pounds or feet	50
5,000 to 9,999 pounds or feet	55
2,000 to 4,999 pounds or feet	65
Under 2,000 pounds or feet	80

Mechanical tubing — No additional mark upon the mill net price.

NOTE.—Where you purchase in lots of less than 75 lbs. or feet you must request your supplier to notify you of his authorized increase in ceiling price.

Tool steel bars and drill rod — Do.
2. Direct mill shipments of prime industrial steel products — Do.

	All areas (percent)
B. Secondary or reject semi-finished Industrial Steel Products	10.
C. Prime quality Merchant Trade Products purchased from jobbers:	
1. Merchant Trade Wire Products:	
Shipment from warehouse stock at wholesale	25.
Shipment from warehouse stock at retail	30.
Direct mill shipment	No additional markup on the mill net price.

The term "Merchant Wire Products" is used in its customary trade meaning and includes such commodities as wire nails and staples; barbed wire and twisted barb wire; twisted fence stays, wire fence, including farm field fence, poultry fence, ornamental lawn fence and diamond mesh fence annealed and galvanized fence wire; merchant wire; stone wire; single loop bale ties and wire hoops. It also includes fence posts and tie wire for automatic balers. The term does not include manufacturer's wire, wire rope, lead head and cut nails, or welded wire fabric for reinforcement.

2. Roofing and siding.

	All areas (percent)
Shipments from warehouse stock at wholesale	25
Shipments from warehouse stock at retail	30

Direct mill shipments. No additional markup on the mill net price.

"Roofing and siding" means galvanized and other metallic coated or painted iron or steel sheets in rolls or which have been corrugated or otherwise formed and which are commonly used as overhead or side covering on buildings or other structures. It does not include metallic coated sheets in coils sold for other than roofing purposes, or formed sheets sold for use in the manufacture of culvert pipe or structural arches.

3. Merchant trade pipe and tubular products. Direct mill shipments in carload lots. No additional markup on the mill net price.

Direct mill shipments in less than carload lots and all shipments out of warehouse stock:

	Percent
(i) Standard weight pipe and standard weight line pipe in sizes 6 inches and smaller	25
(ii) Standard weight pipe and standard weight line pipe in sizes over 6 inches	30
(iii) All sizes of extra strong pipe, double extra strong pipe, waterwell casing and large OD pipe	30
(iv) Wrought iron pipe. No additional markup on the mill net price.	

For shipment from warehouse stock you must request your supplier to provide you with his authorized increase in ceiling price.

D. Prime quality oil country tubular products.

	Percent
Warehouse or field stock sales	10.6

Direct mill shipments. No additional markup on the mill net price.

Oil country tubular products include casing, tubing, drill pipe and drivepipe.

[F. R. Doc. 52-10007; Filed, Sept. 10, 1952; 11:03 a. m.]

[Ceiling Price Regulation 22, Amdt. 55]

CPR 22—MANUFACTURERS' GENERAL CEILING PRICE REGULATION

REPORTS UNDER SECTION 32 FOR CHEMICAL SPECIALTIES

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this Amendment 55 to Ceiling Price Regulation 22 is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment makes OPS Public Form No. 128 inapplicable to any chemical specialty. It has been found that this form is not appropriate or convenient for reporting section 32 ceiling prices for chemical specialties. The burden imposed upon manufacturers of such products by OPS Public Form No. 128 is disproportionate to the benefits to be achieved by requiring use of the form.

This amendment therefore exempts manufacturers of these products from the requirement that their reports of ceiling prices under section 32 be made on OPS Public Form 128.

In the formulation of this regulation, special circumstances have rendered consultation with industry representatives, including trade association representatives, impractical.

AMENDATORY PROVISION

Section 32 (g) (3) (ii) of Ceiling Price Regulation 22 is amended to read as follows:

(ii) *Chemicals.* The term "chemicals" as used in subparagraph (2) of this paragraph means a substance obtained by a chemical process or used for producing a chemical effect including, but not limited to, basic materials such as acids, alkalies, salts and organic chemicals; products to be used in further manufacture such as plastic materials, adhesives, dry colors, dyes and pigments; and products to be used as materials or supplies in other industries such as fertilizers, pesticides and explosives. The term also includes chemical specialties. Not included are paints, varnishes, lacquers, animal and vegetable oils, and finished products to be used for ultimate consumption such as drugs, cosmetics and soaps.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment is effective September 15, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10006; Filed, Sept. 10, 1952; 4:00 p. m.]

[Ceiling Price Regulation 120, Supplementary Regulation 1]

CPR 120—CEILING PRICES FOR TERRITORIAL EATING AND DRINKING ESTABLISHMENTS

SR 1—ADJUSTMENT FOR INCREASES IN FOOD COSTS IN ALASKA, GUAM, AND HAWAII DUE TO THE WEST COAST MARITIME STRIKE

REVOCATION

Supplementary Regulation 1 to Ceiling Price Regulation 120 permits restaurant operators in the territories of Alaska, Guam and Hawaii to increase their ceiling prices established under Ceiling Price Regulation 120, in order to overcome an increase in costs and a squeeze on their margins caused by the maritime strike on the west coast of the United States.

It was stated in the Statement of Considerations accompanying the Supplementary Regulation that the Office of Price Stabilization would revoke the increases granted when it deemed that the strike emergency had ended.

Ths Office of Price Stabilization has been advised that the maritime strike on the west coast has been settled and has determined that the emergency caused by the strike has ended. Therefore, Supplementary Regulation 1 to Ceiling Price Regulation 120 is being revoked. In the formulation of this action special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 and Economic Stabilization Agency General Order No. 2, Supplementary Regulation 1 to Ceiling Price Regulation 120 is hereby revoked, effective September 10, 1952.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10000; Filed, Sept. 10, 1952; 11:00 a. m.]

[Ceiling Price Regulation 166, Amdt. 1]

CPR 166—CEILING PRICES FOR TEXTILE PRODUCTS SOLD IN PUERTO RICO

ADDITION OF APPENDIX A

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this Amendment 1 to Ceiling Price Regulation 166 is hereby issued.

STATEMENT OF CONSIDERATIONS

Ceiling Price Regulation 166 establishes ceiling prices for textile products sold in Puerto Rico at various levels of distribution.

Section 5 of the regulation requires that sellers of textile products shall prepare and keep a textile reference book, in which they must enter, prior to the offer for sale or sale of textile products, the information required by section 5 of the regulation. Reference is made in this section to a suggested form of reference book which is contained in Appendix A to the regulation. Due to a clerical error Appendix A was omitted. Accordingly, this amendment adds to Ceiling Price Regulation 166 an Appendix A containing the suggested form of the reference book.

In the formulation of this amendment special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

AMENDATORY PROVISIONS

Ceiling Price Regulation 166 is amended by inserting at the end thereof the following new matter:

No._____

APPENDIX A—SUGGESTED FORM FOR TEXTILE REFERENCE BOOK

Dealer's name_____ Store's name_____ Address_____, _____ P. R.
Street and No. Municipality

Reference No.		Unit	Description of commodity	Name and address of supplier from whom commodity was purchased	Date received	Delivered cost	Applicable multiplier		Selling price per unit		Remarks
Dealer's	Supplier's						Wholesale	Retail	Wholesale	Retail	

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This Amendment 1 to Ceiling Price Regulation 166 is effective September 10, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10001; Filed, Sept. 10, 1952; 11:00 a. m.]

[General Ceiling Price Regulation, Amdt. 34]

GENERAL CEILING PRICE REGULATION

USED TRUCKS NOT ACQUIRED FOR PURPOSE OF SALE

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this Amendment 34 to General Ceiling Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment exempts from the General Ceiling Price Regulation sales of used trucks not acquired for the purpose of sale, provided that the used truck may not be sold at a price higher than the ceiling price of the truck when new. In the event the seller cannot determine the ceiling price of the truck when new he may not sell the truck for a price higher than his own acquisition cost.

Used trucks have previously been excluded from the coverage of section 14 (t) (1) of the General Ceiling Price Regulation, applicable to most used supplies and equipment not acquired or produced for the purpose of sale. As a result, a seller of a used truck has had to apply for the establishment of a ceiling price under section 7 of the GCPR. The issuance of a letter order in each case has created an administrative burden not warranted by the benefits derived therefrom. This amendment therefore makes section 14 (t) (1) applicable to used trucks not acquired for the purpose of sale.

Sales of used trucks by dealers, whether franchised or non-franchised, and by individuals who acquired the truck for resale rather than use, continue to be covered by the GCPR.

In the preparation of this amendment, consultation was held with industry representatives, including trade association representatives, and consideration was given to their recommendations.

AMENDATORY PROVISIONS

The General Ceiling Price Regulation is amended in the following respect:

Subparagraph (2) of section 14 (t) is amended by deleting the words "used truck" therefrom so that the subparagraph as amended will read as follows:

(2) This exemption does not apply to used rails or trackwork, demolition projects, scrap or waste materials, or to any commodity which is now or hereafter specifically covered by any supplementary regulation to the General Ceiling Price Regulation or any numbered ceiling price regulation.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective September 15, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10008; Filed, Sept. 10, 1952; 4:00 p. m.]

[General Ceiling Price Regulation, Amdt. 35]

GENERAL CEILING PRICE REGULATION

NOTICES OF PARITY ADJUSTMENTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, and Economic Stabilization Agency General Order No. 2, this Amendment 35 to the General Ceiling Price Regulation is hereby issued.

STATEMENT OF CONSIDERATIONS

This amendment to section 11 of the General Ceiling Price Regulation (GCPR) provides for the filing of notices of "parity" adjustment increases in the OPS District Office for the district in which the processing plant is located,

irrespective of the location of the selling units through which the production of that plant is sold. However, if the records of the processing plant are not maintained at that plant, the notices may be filed with the District Director in whose district those records are maintained.

Amendment 30 to the GCPR requires notices of "parity" adjustment increases to be sent to each District Director within whose district the manufacturer or processor has a selling unit. As stated in the Statement of Considerations to that amendment, that action was taken in order to decentralize the administration of "parity" adjustment filings. The result, however, is burdensome for manufacturers and processors who operate selling units in more than one OPS District. To alleviate this burden, the Director of OPS considered it advisable to change the place where such notices are to be filed, as above stated.

In addition, when the Director of Price Stabilization deems it advisable he may direct certain manufacturers or processors to make their filings with the National Office of the Office of Price Stabilization.

This amendment also makes minor changes in the items of information to be submitted to OPS.

In the formulation of this amendment there has been consultation with industry representatives, including trade association representatives, to the extent practicable, and consideration has been given to their recommendations. In the judgment of the Director of the Office of Price Stabilization the provisions of this amendment are generally fair and equitable, are necessary to effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended, and comply with all the applicable standards of that act.

AMENDATORY PROVISIONS

The General Ceiling Price Regulation is hereby amended in the following respects:

1. Section 11 (f) is amended to read as follows:

(f) *Notice of "Parity" Adjustment Increases.* (1) If you are a processor or a manufacturer to whom the provisions of section 11 (b) (2) are applicable, you may not increase your ceiling price for such commodity until you first notify, as specified in this paragraph, the District Director of the Office of Price Stabilization in whose district you have your processing plant. However, if the records required in section 16, pertaining to the commodities produced in that processing plant, are not maintained in the district where the processing plant is located, you may notify the District Director in whose district those records are maintained. Your notice shall be sent by registered mail and contain the following information:

(i) Name and address of the processing plant which incurs the increased cost for the listed commodity or product processed therefrom;

(ii) A description of the commodity you are selling;

(iii) Name and address of each selling unit which sells the commodity and your existing ceiling price at each such selling unit;

(iv) The highest price you paid or incurred, during the base period or during the periods provided for in paragraph (d) of this section, for a customary purchase (or, if applicable, the commodity exchange quotation) of the commodity or product referred to under subdivision (i) of this subparagraph and processed at that plant; or, if you have previously increased your ceiling price, then the price upon which you based your existing ceiling price;

(v) The new cost or new commodity exchange quotation, whichever is applicable;

(vi) The increased ceiling price at each selling unit listed in subdivision (iii) of this subparagraph.

In the case of increased cost of ingredients, furnish the figures substantiating the conversion of your increase in cost to the increase in the ceiling price of the commodity.

2. Section 11 (f) (2) is amended so that the portion thereof preceding (i) shall read as follows:

(2) If you are either a producer-processor pricing under section 11 (b) (3) (i), or a processor operating under "open" price or deferred payment contracts and pricing under section 11 (b) (3) (ii), you may not increase your ceiling price for such commodity until you first notify the District Director of the Office of Price Stabilization in whose district you have your processing plant. However, if the records required in section 16, pertaining to the commodities produced in that processing plant, are not maintained in the district where the processing plant is located, you may notify the District Director in whose district those records are maintained. Your notice shall be sent by registered mail and contain the following information:

3. Section 11 (f) (3) is amended so that the portion thereof preceding (i) shall read as follows:

(3) If you are a cooperative-processor pricing under section 11 (b) (3) (iii), you may increase your ceiling price without first giving any notice, but must, within 120 days after the close of the "pool" or the end of each normal accounting period during which you increased your ceiling price, notify the District Director of the Office of Price Stabilization in whose district you have your processing plant. However, if the records required in section 16, pertaining to the commodities produced in that processing plant, are not maintained in the district where the processing plant is located, you may notify the District Director in whose district those records are maintained. Your notice shall be sent by registered mail and contain the following information:

4. A new subparagraph (4) is added at the end of section 11 (f) to read as follows:

(4) Notwithstanding the other provisions of paragraph (f), the Director of the Office of Price Stabilization may, in writing, require you to file your notices of "parity" adjustment increases with the National Office of the Office of Price Stabilization, Washington, D. C.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This Amendment 35 to the General Ceiling Price Regulation is effective September 15, 1952.

NOTE: The record-keeping and reporting requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10009; Filed, Sept. 10, 1952; 4:01 p. m.]

[General Ceiling Price Regulation, Amdt. 1 to Supplementary Regulation 34, Revised]

GCPR, SR 34—ADJUSTMENT OF CEILING PRICES OF MANUFACTURERS AND DISTRIBUTORS OF FRESH AND SEMI-DRY SAUSAGE MADE IN WHOLE OR IN PART FROM BEEF OR STUFFED IN SHEEP CASINGS

CERTAIN SELLERS TO FILE WITH DISTRICT INSTEAD OF REGIONAL OFFICES

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161, Economic Stabilization Agency General Order 2, this Amendment 1 to General Ceiling Price Regulation, Supplementary Regulation 34, Revised is hereby issued.

STATEMENT OF CONSIDERATIONS

The accompanying amendment to General Ceiling Price Regulation, Supplementary Regulation 34, Revised (SR 34 Rev.) requires that certain sellers file reports with their District Office instead of their Regional Office of the Office of Price Stabilization. It has been determined that the filings, required under section 10 of this regulation, may be processed more effectively at the district office level due to the fact that intimate knowledge of the reporting seller's operations may be more readily obtained. Furthermore, this amendment conforms to recent amendments to CPRs 24, 74, 92, and 101, which directed certain sellers covered by those regulations to file reports with the District rather than the Regional office.

The files of sellers affected by this amendment are being transferred from the Regional to the appropriate district offices of the Office of Price Stabilization so that a more effective administration of the regulation will be attained.

In the judgement of the Director of Price Stabilization, the provisions of this amendment are generally fair and equitable and necessary to effectuate the purposes of Title IV of the Defense Production Act of 1950, as amended. In formulating this amendment, the Director of Price Stabilization has consulted with industry representatives, including trade association representatives, as far as practicable and has given full consideration to their recommendations.

AMENDATORY PROVISIONS

General Ceiling Price Regulation, Supplementary Regulation 34 is amended in the following respect:

1. Section 10 (a) (1) is amended by deleting the words "Regional Director" wherever they appear and inserting the words "District Director" therefor.

2. Section 10 (b) (2) (i) is amended to read as follows:

(i) You must make such modification in your increased ceiling price as is required in the notice from the Regional office, District office or National office; and

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This amendment shall become effective on September 15, 1952.

NOTE: The record-keeping and reporting requirements of this amendment have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10003; Filed, Sept. 10, 1952; 11:01 a. m.]

[General Ceiling Price Regulation, Supplementary Regulation 63, Area Milk Price Regulation 6, Revision 1]

GCPR, SR 63—AREA MILK PRICE ADJUSTMENTS

AMPR 6—MILK PRODUCTS FOR FLUID CONSUMPTION IN THE SPRINGFIELD, MASSACHUSETTS, MILK MARKETING AREA

CHANGE IN FILING REQUIREMENTS

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), Economic Stabilization Agency General Order No. 2 (16 F. R. 738), Supplementary Regulation 63 to the General Ceiling Price Regulation (16 F. R. 9559), and Delegation of Authority No. 41 (16 F. R. 12679), this Amendment 1 to Area Milk Price Regulation 6 (Revision 1) is hereby issued.

STATEMENT OF CONSIDERATIONS

On June 20, 1952, Area Milk Price Regulation 6 (Revision 1) was issued pursuant to Region 1 Redelegation of Authority No. 22 (17 F. R. 260). Under section 7, applications made pursuant thereto are required to be filed with the Springfield District Office of the Office of Price Stabilization. Under section 8, certain reports are required to be filed with that office. Section 14 confers upon the Director of that office the powers therein specified. Under section 16, the Director of the Springfield District Office is empowered to issue a Letter Order establishing ceiling prices for fluid milk products under circumstances therein stated.

On August 15, 1952, pursuant to section 3(a)(1) of the Administrative Procedure Act, an amendment, of the Organization Statement as published in the FEDERAL REGISTER dated January 21, 1952 (17 F. R. 675), was issued which provides in section 33, in part, as follows: "The Boston Regional Office will service the entire State of Massachusetts; this area was formerly serviced by the Boston and Springfield, Massachusetts, District Offices."

Consequently, it is necessary that applications, and reports, required by this regulation to be filed with the Springfield District Office, will hereafter have to be filed with the Boston Regional Office; and that powers which are conferred upon the Director of the Springfield District Office will hereafter have to be exercised by the Director of the Boston Regional Office. For the purpose of conforming to these necessary requirements, this amendment is issued. In the formulation of this Amendment, special circumstances have rendered consultation with industry representatives impractical.

AMENDATORY PROVISIONS

Area Milk Price Regulation 6 (Revision 1), issued under Supplementary Regulation 63, as amended, to the General Ceiling Price Regulation, is amended in the following respects:

1. Sections 7, 14 and 16 are amended so as to change the phrase "Springfield District Office," where it appears, to read: Boston Regional Office.

2. Section 8 is amended by changing the phrase "Springfield District Office of the Office of Price Stabilization, Springfield", where it appears, to read: Boston Regional Office of the Office of Price Stabilization, Boston 9.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

Effective date. This Amendment 1 to Area Milk Price Regulation 6 (Revision 1) is effective September 10, 1952.

JOSEPH M. MCDONOUGH,
Director of Regional I Office,
Boston 9, Massachusetts.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10010; Filed, Sept. 10, 1952; 4:01 p. m.]

CHAPTER III—OFFICE OF PRICE STABILIZATION, ECONOMIC STABILIZATION AGENCY

[General Ceiling Price Regulation, Supplementary Regulation 118]

GCPR, SR 118—CEILING PRICES FOR SALES BY MANUFACTURERS AND BRAND OWNERS OF NEW REPLACEMENT SECOND LINE TIRES

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2 (16 F. R. 738), this supplementary regulation to the General Ceiling Price Regulation (16 F. R. 5424) is hereby issued.

STATEMENT OF CONSIDERATIONS

Prior to the outbreak in Korea, automobile tire manufacturers and brand owners were marketing "second line" as well as "first line" standard pressure tires and only first line low pressure tires. As of March 15, 1951, NPA prohibited the manufacture of more than one price line of standard tread depth passenger car tires. The tire manufacturing industry generally abandoned production of second line tires in favor of first line tires. This prohibition was lifted, effective January 1, 1952. Currently, manufacturers and brand owners are again engaged in producing and marketing second line standard pressure tires. For these tires, ceiling prices were already established by the GCPR freeze of prices, and these are the ceiling prices still in effect. In addition, the manufacturers introduced for the first time second line low pressure tires.

Second line tires are ordinarily sold by manufacturers and brand owners, and by resellers at subsequent levels of distribution as well, at prices which reflect narrower margins above cost than first line tires.

Since the ceiling prices of tires and tubes are governed by GCPR, sellers are required to establish ceiling prices for new tires under section 4 or 5. When applied to the pricing of new second line low pressure tires, the provisions of these sections may require the use of second line standard pressure tires as comparison commodities. Ceiling prices computed under sections 4 and 5 may therefore require individual manufacturers to apply the same margins over direct cost for each size of the new second line low pressure tire as are reflected by their GCPR ceilings for the most nearly comparable size of the second line standard pressure tires.

Since direct costs of manufacturing any given size of tire may vary considerably from manufacturer to manufacturer, the Director is of the opinion that a tailored regulation is desirable for the new second line low pressure tires to avoid abnormal ceiling price disparities within the industry which traditionally maintained fairly uniform price structures. The range of price relationships of these second line standard pressure tires to first line standard pressure tires in the three popular sizes, representing 90 percent of the sales, varies from 72.6 percent to 79.2 percent. This supplementary regulation establishes ceiling list prices for second line low pressure tires at 75 percent of the ceiling prices for the first line equivalent of these tires. It will thus afford consumers approximately the same average saving as is available in the standard pressure second line tires as compared to the first line of the same tires.

The Director cannot ignore the possibility that individually computed ceiling prices and the customary practice of the industry to meet the low cost producer's price might discourage existing producers of the popular size tires from maximizing their output. Conceivably, a high cost producer might even be forced to withdraw production of such popular sizes altogether. Consideration has also been given to the possibility that smaller tire producers now planning to enter the field of popular size second line low pressure tire production might shelve these plans altogether.

Sellers of second line low pressure tires other than manufacturers and brand owners will be required by exist-

ing OPS regulations to bring their ceiling prices for these tires into conformity with the new lower ceilings established by this supplementary regulation.

In view of the nature of this supplementary regulation, special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

REGULATORY PROVISIONS

Sec.
1. What this supplementary regulation does.
2. Manufacturers' and Brand Owners' ceiling prices.
3. Records.
4. Incorporation of GCPR provisions.
5. Definitions.

AUTHORITY: Sections 1 to 5 issued under sec. 704, 64 Stat. 816, as amended: 50 U. S. C. App. Sup. 2154. Interpret or apply Title IV, 64 Stat. 803, as amended: 50 U. S. C. App. Sup. 2101-2110, E. O. 10161, Sept. 9, 1950, 15 F. R. 6105, 3 CFR, 1950 Supp.

SECTION 1. *What this supplementary regulation does.* This supplementary regulation establishes ceiling prices for sales by manufacturers and brand owners of all sizes of new second line low pressure tires. This is accomplished by requiring that each manufacturer and brand owner individually apply to his published retail list price for the same size first line low pressure tire a specified percentage to arrive at his reference or retail list price for the second line low pressure tire. The retail list or reference prices so computed less the same discounts, allowances and services which a manufacturer or brand owner extended to his various classes of purchasers in his sales of second line tires are his ceiling prices. As to sales by manufacturers and brand owners of these second line low pressure tires, this supplementary regulation supersedes the GCPR.

SEC. 2. *Manufacturers' and brand owners' ceiling prices.* (a) Your ceiling prices to your various classes of purchasers for all your sales of second line low pressure tires are your reference or retail list prices computed under paragraph (b) of this section less the same discounts off list, allowances and services, other than those of a temporary nature and which had a specified termination date, which you extended to each of those classes of purchasers in your sales of second line tires during the 30-day period preceding the issuance of this regulation.

(b) Your reference or retail list price for any size second line low pressure tire is 75 percent of the published retail list price which you had in effect during the 30 day period preceding the effective date of this regulation for the same size first line low pressure tire.

(c) If you customarily expressed your retail list prices in multiples of five cents, then you may round to the nearest nickel your reference or list prices computed in accordance with this section. If you elect to do so, you must similarly round your retail or reference prices computed under this supplementary regulation to reflect decreases as well as increases. You may not, however, round any prices which are arrived at by applying discounts or allowances off your list prices.

Example: You want to compute your ceiling prices for a 6.70 x 15 size second line low pressure tire. Your retail list price for your first line 6.70 x 15 tire is $22.05. $22.05 x 75% = $16.54. Your reference or retail list price for your second line 6.70 x 15 tire is $16.55 ($16.54 rounded to the nearest nickel, if your retail list prices were normally so rounded.) Your ceiling price to your "A" Dealer is $11.88 (rounding not being permitted).

SEC. 3. *Records.* You shall prepare and preserve for the life of the Defense Production Act of 1950, as amended, and for two years thereafter, and keep available for examination by the Office of Price Stabilization all price lists and discounts, allowances and services structure sheets which you used in computing your ceiling prices for new second line low pressure tires under this supplementary regulation.

SEC. 4. *Incorporation of GCPR provisions.* Except as herein specifically modified, all of the provisions of the General Ceiling Price Regulation remain in effect.

SEC. 5. *Definitions.* (a) A "brand owner" is one who markets a passenger car tire under his own brand name or label, even though he does not himself manufacture it.

(b) A "second line tire" is a tire designed to sell at a lower price than the brand owner's first line tire and which is generally recognized in the trade as that brand owner's second line tire.

(c) A "first line tire" is one which is designed at a quality level to replace and to sell in competition with an original equipment quality tire.

(d) An "original equipment tire" is that quality rubber tire in a brand owner's line generally produced for sale to a manufacturer of passenger cars and intended for use on such vehicles as part of its original equipment.

(e) "You" means any seller subject to this supplementary regulation.

NOTE: The record-keeping requirements of this regulation have been approved by the Bureau of the Budget in accordance with the Federal Reports Act of 1942.

Effective date. This supplementary regulation is effective September 10, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10005; Filed, Sept. 10, 1952; 2:01 p. m.]

[General Overriding Regulation 31, Revocation]

GOR 31—AIR FREIGHT DURING STRIKE EMERGENCY ON SHIPMENTS TO HAWAII

REVOCATION

General Overriding Regulation 31 permits sellers in Hawaii to add to their ceiling prices otherwise established for certain commodities, the increase in costs of shipping these commodities by air freight in order to overcome an increase in costs and a squeeze on their margins caused by the maritime strike on the west coast of the United States.

It was stated in the Statement of Considerations accompanying that regulation that the Office of Price Stabilization would revoke that regulation as soon as the strike emergency ended as to all commodities not actually delivered or in transit at that time.

The Office of Price Stabilization has been advised that the maritime strike on the west coast has been settled and has determined that the emergency caused by the strike has ended, therefore, General Overriding Regulation 31 is being revoked. In the formulation of this action special circumstances have rendered consultation with industry representatives, including trade association representatives, impracticable.

Pursuant to the Defense Production Act of 1950, as amended, Executive Order 10161 and Economic Stabilization Agency General Order No. 2, General Overriding Regulation 31 is hereby revoked, effective September 10, 1952.

(Sec. 704, 64 Stat. 816, as amended; 50 U. S. C. App. Sup. 2154)

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10004; Filed, Sept. 10, 1952; 11:01 a. m.]

Chapter XVII—Housing and Home Finance Agency

[CR 3, Amdt. 3 to Appendix]

CR 3—RELAXATION OF RESIDENTIAL CREDIT CONTROLS: REGULATION GOVERNING PROCESSING AND APPROVAL OF EXCEPTIONS AND TERMS FOR CRITICAL DEFENSE HOUSING AREAS

MISCELLANEOUS AMENDMENTS

1. This Amendment 3 amends the Appendix to CR 3 published in the FEDERAL REGISTER July 18, 1952 (17 F. R. 6585), and last amended by Amendment 2 published August 26, 1952 (17 F. R. 7788), by adding the following additional critical defense housing areas to the areas already designated under CR 3:

Area, Including Geographical Description and Date Designated

195. Opheim, Montana, Area. (School District 9, including Opheim Town in Valley County, Montana), September 11, 1952.

196. Kinross Air Force Base, Michigan, Area. (Kinross and Pickford Townships in Chippewa County, Michigan), September 11, 1952.

197. Milwaukee, Wisconsin, Area. (All of Milwaukee County, Wisconsin), September 11, 1952.

2. The Appendix to CR 3 is further amended by changing the description of critical defense housing areas previously published and numbered 32 and 42, respectively, to read as follows:

32. Barstow, California, Area. (Barstow and Yermo Townships, and that part of Belleville Township bounded on the east by the eastern limit of Range 5 East; on the south by the southern limit of Township 8

North; and on the west and north by the Belleville Township line; all in California.)

* * * * *

42. Hartford, Connecticut, Area. (The towns of Avon, Bloomfield, Canton, East Granby, East Hartford, Farmington, Glastonbury, Granby, Hartford, Manchester, Newington, Rocky Hill, Simsbury, South Windsor, West Hartford, Wethersfield, Windsor and Windsor Locks in Hartford County; and the town of Bolton in Tolland County; all in Connecticut.)

RAYMOND M. FOLEY,
Housing and Home Finance Administrator.

[F. R. Doc. 52-9930; Filed, Sept. 10, 1952; 8:53 a. m.]

TITLE 33—NAVIGATION AND NAVIGABLE WATERS

Chapter I—Coast Guard, Department of the Treasury

Subchapter B—Military Personnel

[CGFR 52-34]

PART 40—CADETS OF THE COAST GUARD

MISCELLANEOUS AMENDMENTS

By virtue of the authority contained in Title 14, United States Code, section 92, 633 (section 1, 63 Stat. 503, 545), the following amendments to the regulations are prescribed and shall be effective on and after the date of publication of this order in the FEDERAL REGISTER:

1. Section 40.2 is amended to read as follows:

§ 40.2 *Applications.* The Coast Guard is interested in receiving applications for cadetship from all young men who feel that they meet the requirements outlined in the regulations in this part. Any young man who recognizes in himself no serious deficiency and who is sincerely interested in a Coast Guard career is encouraged to make application. A pamphlet "Career for Tomorrow", which contains the Regulations Governing Appointments, together with the required application forms, may be obtained from the Commandant, United States Coast Guard; Superintendent, United States Coast Guard Academy; all Coast Guard District Offices; and all Coast Guard Recruiting Stations.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

2. Section 40.3 (d) is amended to read as follows:

§ 40.3 *General requirements for eligibility.* * * *

(d) He must be unmarried, and have never been married. Any cadet who shall marry, or who shall be found to be married or to have been married before his final graduation, shall be required to resign. Refusal to resign will result in dismissal.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

3. Section 40.6 is amended to read as follows:

§ 40.6 *Specific requirements for eligibility.* (a) No waivers of any requirement, educational or physical, are granted to applicants. A candidate must be a graduate of an accredited public high school or preparatory school or be in actual attendance in his senior year at an accredited preparatory school or public high school, and have already completed three (3) years work at such a school. A candidate indicating prospective graduation from a preparatory school or public high school must as a condition of admission satisfactorily complete his course not later than June 30. With the exception of courses completed through the United States Armed Forces Institute for which credit has been granted by an accredited school, correspondence schools do not meet the requirements for "Accredited Schools". Certificates issued by correspondence schools will not be accepted. A total of 15 units, obtained in high school, preparatory school, or college must be submitted.

(1) The subjects listed below, comprising 7 units, are mandatory and are required for eligibility:

Mathematics (1) (Algebra to quadratics)	1
Mathematics (2) (Algebra—quadratics and beyond)	1
Mathematics (3) (Plane Geometry)	1
English 1, 2, and 3	3
Physics	1
Total units	7

(2) Further evidence of adequate preparation, amounting to 8 units of optional subjects, is required and may be offered from the following groups, subject to the limitations of paragraph (c) of this section:

Foreign language.
Social science (history, civics, etc.).
Biological science (biology, zoology, etc.).
Physical science (chemistry, general science, etc.).
Mathematics.
Mechanic arts.
Mechanical drawing.
Fine arts, drama, and music.
Commercial studies.
Fourth-year English.

(3) While not required, it is strongly recommended that a candidate include solid geometry, trigonometry and chemistry in his preparation.

(b) Candidates whose high schools offer only 1½ years of algebra may, at the discretion of the Commandant, be given credit for 1 unit of algebra 2 on presentation of proof that they have covered the subject matter listed in § 40.13 (a) (2) (v) "algebra-quadratics and beyond."

(c) In computing the number of optional credits, the following limitations are imposed:

(1) Foreign language, not less than 2 units. Any foreign language taught in an accredited school is acceptable, provided the student completes successfully a two-year course.

(2) A total of not more than 2 units will be accepted from any or all of the following groups: Mechanic arts, mechanical drawing, commercial studies, fine arts, drama and music.

(d) To satisfy the requirements of § 40.3 (c) a candidate may submit both high-school and college credits. Because of the great variation in academic standards and credit requirements among schools, the Commandant reserves the right to evaluate each academic record submitted on its individual merits. In general, college credits from an accredited institution will be given greater weight than high-school credits for the same amount of work, but in no case will one semester of college work be considered equivalent to more than one unit of high-school work.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

4. Section 40.9 is amended to read as follows:

§ 40. *Date of examination.* Examinations will be held annually for two successive days commencing on the fourth Monday in February, at places where examiners are available. If either of these days falls on Washington's Birthday, the examination will be held on the two days immediately following the holiday. The examiners will be commissioned officers of the Coast Guard, or civil-service examiners. All expenses connected with the candidate's appearance before examiners and medical boards must be borne by the candidate.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

5. Sections 40.10 (c) and (g), are amended to read as follows:

§ 40.10 *Annual competitive examinations.* * * *

(c) *Achievement tests.* Each candidate will be tested for knowledge in all of the following subjects:

(1) English (Grammar, Composition, Literature, and Reading Comprehension).
(2) Mathematics (Algebra and Plane Geometry).
(3) Science (Physics).

* * * * *

(g) *Computation of final mark.* The final mark of each candidate will be computed by averaging the following five sub-scores in accordance with the indicated weights:

English	20
Mathematics	20
Science	10
Aptitudes and Abilities	10
General Adaptability	40
Total	100

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

6. Section 40.11 is amended to read as follows:

§ 40.11 *Schedule of examinations.* (a) The schedule of examinations will normally be as follows:

First day: 8 a. m. to 12 noon—Mathematics and science; 1 p. m. to 4:30 p. m.—English, questionnaires.

Second day: 8 a. m. to 12 noon—Aptitude tests, questionnaires; 1 p. m. to 4:30 p. m.—Interviews.

(b) All materials necessary for taking the examination will be furnished each candidate. Drawing instruments and slide rules will not be permitted.

(c) Physical examinations will be given only to those candidates who have high final marks and are in line for appointment. They will usually be given about two months after the competitive examination. Medical Boards will consist of Medical Officers of the Public Health Service, Navy, Army or Air Force.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92,633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

7. Section 40.13 is amended to read as follows:

§ 40.13 *Scope of studies for required subjects*—(a) *Mathematics*—(1) *Algebra to quadratics; one unit.* (i) The meaning, use, evaluation, and necessary transformations of simple formulas involving ideas with which the pupil is familiar, and the derivation of such formulas from rules expressed in words.

(ii) The graph and graphical representation in general. The construction and interpretation of graphs.

(iii) Negative numbers; their meaning and use.

(iv) Linear equations in one unknown quantity, and simultaneous linear equations involving two unknown quantities, with verification of results. Problems.

(v) Ratio, as a case of simple fractions; proportion, as a case of equation between two ratios; variation. Problems.

(vi) The essentials of algebraic technic.

(vii) Exponents and radicals.

(2) *Algebra; quadratics and beyond; one unit.* (i) Numerical and literal quadratic equations in one unknown quantity. Problems.

(ii) The binomial theorem for positive integral exponents, with applications.

(iii) Arithmetic and geometric series.

(iv) Simultaneous linear equations in three unknown quantities.

(v) Simultaneous equations, consisting of one quadratic and one linear equation, or of two quadratic equations of certain types. Graphs.

(vi) Logarithms.

(3) *Plane geometry; one unit.* (i) The usual theorems and constructions of good textbooks, including the general properties of plane rectilinear figures; the circle and the measurement of angles; similar polygons; areas; regular polygons; and the measurement of the circle.

(ii) The solution of numerous original exercises, including loci problems.

(iii) Applications to the mensuration of lines and plane surfaces.

(iv) The examination will consist partly of book propositions and partly of originals. In the former type of question the candidate will be asked to give proofs of standard theorems which are assumed to have been presented to him in his course of study, or to reproduce standard constructions. In the latter type are included the demonstrations of theorems which are not assumed to be familiar to the candidate, problems of measurement and calculation, and problems in working out of unfamiliar constructions and the identification of unfamiliar loci. Questions calling for simple geometrical knowledge and understanding may fall under either type.

(v) The originals on the examination will, in general, depend for their solution on propositions mentioned in the syllabus of the Educational Testing Service, but occasionally the original will be so framed that a solution will occur more readily to the candidate who is familiar with such important geometrical facts as the properties of the 30° and the 45° right triangles.

(vi) The candidate is not required to give proofs of constructions unless a proof is specifically called for by the questions, and such proofs will not be regarded as constituting a part of the book-work requirement but will have the status of originals.

(b) *English 1, 2, and 3; grammar, composition, and literature; three units.* (1) Entrance to the Coast Guard Academy is based on the assumption that each successful candidate will be adequately grounded in the principles of English grammar and composition. The ability to write and speak clearly, correctly, and effectively should be the outgrowth of the candidate's experience in his secondary school English courses. There should be, in those courses, special emphasis on spelling, punctuation, and good usage as the normal requirements for successful work in composition. It is taken for granted that all candidates will have some ability to write clear and well-organized paragraphs or short essays, although the entrance examination may not require any such composition. Advantage should be taken of the oral work that is now a recognized part of most secondary English courses.

(2) The candidate's preparation in literature should conform to the standards set up in most States as a minimum for the college preparatory courses. These standards call for the appreciative reading and understanding of a number of Shakespeare's plays, some narrative and descriptive poems, and several of the classic short stories and novels. A survey of American or English literature is essential for the requirements in English. The candidate who has read widely and intelligently will generally be better prepared than the candidate who has limited the scope of his reading to one or two authors or one or two books. Because of the vast extent of the field and because of the wide variation in secondary English courses, no specific list of books or authors can be given. Standard high school texts or course outlines suggested by many of the State educational systems are adequate guides to preparation in this field.

(3) The examination in English is designed to test the candidate's knowledge of good modern usage, the sum of his reading experience, and his ability to comprehend what he reads.

(c) *Physics; one unit.* Secondary school courses in physics are so well standardized that a definition of a unit is unnecessary. Candidates with a credit in physics as required in § 40.6 (a) (1) will have adequate preparation for the examination.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

8. Section 40.14 is amended to read as follows:

§ 40.14 *Sample questions*—(a) *General purpose.* The following examples of questions from objective type examinations are printed for the information of candidates who may be unfamiliar with this type of test. Questions are answered by marking an answer sheet in accordance with instructions supplied with the tests.

(b) *Mathematics.*

(1) The equation $X^2+ax+b=0$ has equal roots if:

(i) $a=-2\sqrt{b}$.
(ii) $a=2b$.
(iii) $a^2=2b$.
(iv) $a=\frac{b^2}{4c}$.
(v) None of the above.

(2) Which of the following statements is not true? If two triangles are similar,

(i) Corresponding sides are in the same proportion.
(ii) Two angles of one are equal, respectively, to two angles of the other.
(iii) Their areas are proportional to the squares of corresponding sides.
(iv) They are congruent.
(v) None of the above.

(c) *English.*

(1) Which of the five alternatives is nearest in meaning to the word printed in capital letters:

Lackadaisical: (i) tawdry, (ii) pardonable, (iii) spiritless, (iv) workable, (v) willowy.

Galaxy: (i) lily, (ii) lightening, (iii) assembly, (iv) stain, (v) wilderness.

(2) Which of the following was written by Charles Dickens? (i) aVnity Fair, (ii) David Copperfield, (iii) Anthony Adverse, (iv) Forever Amber, (v) Tom Sawyer.

(d) *Science.*

(1) Ohm's Law is:
(i) $F=ma$.
(ii) $PV=RT$.
(iii) $E=IR$.
(iv) $v=v_0+at$.
(v) None of the above.

(2) A body falls freely from rest. In two seconds it will fall approximately:
(i) 16 feet.
(ii) 32 feet.
(iii) 64 feet.
(iv) 129 feet.
(v) None of the above.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

9. Section 40.17(c) is amended to read as follows:

§ 40.17 *Appointments.* • • •

(c) Having been appointed and having taken the oath of office a cadet will be reimbursed for the actual mileage from his home to the Academy at the rate of 6 cents per mile.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

10. Section 40.18 is amended to read as follows:

§ 40.18 *Deposit required.* A cadet, upon admission to the Coast Guard Academy, shall be credited with the

sum of $600 to defray the cost of his initial clothing and equipment, this sum to be deducted subsequently from his pay in accordance with regulations promulgated by the Secretary of the Treasury. In addition each cadet upon appointment shall deposit with the Superintendent of the Academy the sum of $100, this amount to be used to help defray initial clothing and equipment costs which exceed the amount of the $600 credited. The Superintendent of the Academy in exceptional circumstances is authorized to waive this requirement in part, but the amount so waived shall be made up by deductions in amounts to be determined by the Superintendent from the cadet's monthly cash allowances. A cadet may use so much of this $100 as may be necessary to defray his traveling expenses to the Academy. The amount thus used will be deposited with the Superintendent of the Academy when the cadet shall have been paid his mileage.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended, sec. 3 P. L. 122, 82d Cong.; 14 U. S. C. 183)

11. Section 40.19 is amended to read as follows:

§ 40.19 *Pay of cadets.* A cadet in the Coast Guard receives the same pay and allowances as are now or may hereafter be provided by law for midshipmen in the Navy. At present these equal $973.44 per annum and commutation for one ration per day. Pay commences upon the date the oath of office as a cadet is taken. A cadet's pay is not a wage or salary for services rendered. It is money furnished by the Government for uniforms, equipment, textbooks, and other expenses incidental to his training. A cadet does not receive allowances for dependents. Cadet pay is disbursed and expended only as directed by the Superintendent.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

12. Section 40.26 (s) is amended to read as follows:

§ 40.26 *Physical standards.* • • •

(s) Hearing must be normal for each ear by the whispered voice and speech voice tests, the denominator of the fraction being /15. Any chronic disease of the external, middle, or internal ear will be sufficient cause for rejection. Hearing in each ear must be normally acute to the spoken and whispered voice. In examining the acuteness of hearing with the voice, one ear of the candidate shall be closed while the other ear is being examined, and his eyes shall be covered to prevent lip reading.

(Sec. 1, 63 Stat. 503, 545, as amended; 14 U. S. C. 92, 633. Interpret or apply sec. 1, 63 Stat. 508, as amended; 14 U. S. C. 182)

Dated: August 29, 1952.

[SEAL] JOHN S. GRAHAM,
Acting Secretary of the Treasury.

[F. R. Doc. 52-9919; Filed, Sept. 10, 1952; 8:51 a. m.]

TITLE 39—POSTAL SERVICE

Chapter I—Post Office Department

PART 44—LOSS, RIFLING, DAMAGE, OR OTHER MISTREATMENT OF MAIL MATTER; INQUIRIES, COMPLAINTS, AND INVESTIGATIONS; REQUESTS FOR AND FAILURE TO RECEIVE RETURN RECEIPTS; AND COLLECTIONS FROM POSTAL EMPLOYEES AND MAIL CONTRACTORS

PART 60—TREATMENT OF REGISTERED MATTER AT POST OFFICES OF DELIVERY

DOMESTIC REGISTERED MAIL; SHORT-PAID REGISTERED MATTER

1. In § 44.2 *Complaints on domestic registered mail,* amend paragraph (b) (2) to read as follows:

(2) *Report, how.* Complaints of loss or rifling of domestic registered mail at all classes of offices shall be reported on Form 1510 in duplicate. At offices of the first and second classes claims for indemnity for domestic registered mail shall be made on Form 565, in addition to the report on Form 1510, and at such offices complaints of other than loss or rifling, where indemnity is not claimed, shall be reported by letter. Form 565 should not be executed in connection with domestic registered mail accepted upon payment of the minimum registry fee of 30 cents. (See paragraphs (a) and (b) (1) of this section.) Offices of the third and fourth classes will report complaints, other than loss or rifling, and any claims for indemnity, by letter. The inspector in charge will issue necessary instructions on receipt of claims by letter from offices of the third and fourth classes. Whenever available, the envelope or wrapper shall be submitted, and in cases of damage, the damaged contents and packing material shall be retained, if practicable, until the investigation is completed.

(R. S. 161, 396; secs. 304, 309, 42 Stat. 24, 25, sec. 3, 47 Stat. 340; 5 U. S. C. 22, 369, 39 U. S. C. 384a)

2. In § 60.7 *Short-paid registered matter,* amend paragraph (a) to read as follows:

(a) *Treatment of.* When domestic registered mail is delivered to the addressee or to the sender, and the postage and registry fee have not been fully prepaid, the postmaster shall collect the deficiency upon delivery. The stamps affixed to the article shall be applied to the postage required and the remainder, if any, to the registry fee. If the amount of registry fee is not known, the article shall be considered as having been registered at the lowest registry fee for which indemnity is payable, in the absence of information that the article contains nothing of intrinsic value.

NOTE: See §§ 43.7, 43.11, and 43.12 of this chapter as to rating and collecting postage due.

(R. S. 161, 396; secs. 304, 309, 42 Stat. 24, 25, sec. 3, 47 Stat. 340; 5 U. S. C. 22, 369, 39 U. S. C. 384a)

[SEAL] V. C. BURKE,
Acting Postmaster General.

[F. R. Doc. 52-9917; Filed, Sept. 10, 1952; 8:51 a. m.]

PART 58—REGISTRATION OF DOMESTIC MAIL MATTER

PART 64—DOMESTIC INSURANCE AND COLLECT-ON-DELIVERY SERVICE: INDEMNITY

ACCEPTANCE OF MATTER FOR REGISTRATION; ADDITIONAL FEE FOR RESTRICTED DELIVERY

1. In § 58.5 *Acceptance of matter for registration,* amend paragraph (d) by striking out "25 cents," and by inserting in lieu thereof "30 cents."

(R. S. 161, 396; secs. 304, 309, 42 Stat. 24, 25, sec. 3, 47 Stat. 340; 5 U. S. C. 22, 369, 39 U. S. C. 384a)

2. Amend § 64.19 *Additional fee for restricted delivery* to read as follows:

§ 64.19 *Additional fee for restricted delivery.* Upon payment of an additional fee of 20 cents, the sender may restrict delivery of domestic insured mail, except that on which the minimum fee is paid, by marking it "Deliver to addressee only," or "Deliver to addressee or order," or with words of similar import. This fee shall also be collected by the Postmaster at the office of delivery for delivering any domestic numbered insured article (see § 64.5) which the addressee (instead of the sender) has restricted in delivery to himself or to his order.

(R. S. 161, 396; secs. 304, 309, 42 Stat. 24, 25, sec. 212, 62 Stat. 1267; 5 U. S. C. 22, 369, 39 U. S. C. 245c)

[SEAL] V. C. BURKE,
Acting Postmaster General.

[F. R. Doc. 52-9918; Filed, Sept. 10, 1952; 8:51 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 862]

COLORADO

REVOCATION OF EXECUTIVE ORDER NO. 8645 OF JANUARY 22, 1941, ESTABLISHING THE KIT CARSON NATIONAL WILDLIFE REFUGE

By virtue of the authority vested in the President, and pursuant to Executive Order No. 10355 of May 26, 1952 (17 F. R. 4831) it is ordered as follows:

Executive Order No. 8645 of January 22, 1941, reserving all lands owned or controlled by the United States within the following-described area in Colorado for the use of the Department of the Interior as the Kit Carson National Wildlife Refuge, is hereby revoked:

SIXTH PRINCIPAL MERIDIAN

T. 13 S., R. 47 W.,
Sec. 20, lots 1, 2, 7, 8, 9, and 16;
Sec. 21, S½NE¼, W½, and N½SE¼.

The areas described aggregate 721.04 acres of privately-owned lands formerly controlled by the United States under easement deeds.

JOEL D. WOLFSOHN,
Assistant Secretary of the Interior.

SEPTEMBER 5, 1952.

[F. R. Doc. 52-9904; Filed, Sept. 10, 1952; 8:47 a. m.]

TITLE 49—TRANSPORTATION

Chapter I—Interstate Commerce Commission

Subchapter D—Freight Forwarders

PART 440—UNIFORM SYSTEM OF ACCOUNTS FOR FREIGHT FORWARDERS

UNCOLLECTIBLE ACCOUNTS

At a session of the Interstate Commerce Commission, Division 1, held at its office in Washington, D. C., on the 2d day of September A. D. 1952.

The matter of modifying the "Uniform System of Accounts for Freight Forwarders, Issue of 1943," being under consideration pursuant to the provisions of section 412 (a) of the Interstate Commerce Act, as amended (56 Stat. 294, 49 U. S. C. 1012); and,

It appearing, that a notice of proposed rule making dated July 24, 1952, was served on all freight forwarders subject to provisions of the act and was published in the FEDERAL REGISTER on August 7, 1952 (17 F. R. 7187) pursuant to provisions of section 4 of the Administrative Procedure Act; and,

It further appearing, that the notice provided for written views or arguments to be filed in that connection on or before August 29, 1952, and no representations of any sort having been received; It is ordered, that:

(1) *Effective date.* Effective October 1, 1952, the text of account 412, "Provision for Uncollectible Accounts", shall be modified as provided in the above notice by adding the following as the second paragraph of that text:

This account shall also be charged with amounts determined to be uncollectible when no reserves are provided for doubtful accounts.

(2) *Notice.* A copy of this order shall be served on every freight forwarder subject to the act and on each trustee, receiver, executor, administrator, or assignee of any such freight forwarder, and notice of this order shall be given to the general public by depositing a copy thereof in the office of the Secretary of the Commission at Washington, D. C., and by filing it with the Director of the Division of the Federal Register.

(56 Stat. 285; 49 U. S. C. 1003. Interprets or applies 56 Stat. 294; 49 U. S. C. 1012)

By the Commission, Division 1.

[SEAL] GEORGE W. LAIRD, *Acting Secretary.*

[F. R. Doc. 52-9929; Filed, Sept. 10, 1952; 8:53 a. m.]

TITLE 50—WILDLIFE

Chapter I—Fish and Wildlife Service, Department of the Interior

PART 17—LIST OF AREAS

NATIONAL WILDLIFE REFUGES

EDITORIAL NOTE: For amendment of § 17.3 by the deletion of the Kit Carson National Wildlife Refuge from the tabulation contained therein, see Public Land Order 862 in the Appendix to Title 43, Chapter I, *supra*, revoking Executive Order No. 8645 of January 22, 1941, which established the said wildlife refuge.

PROPOSED RULE MAKING

CIVIL AERONAUTICS BOARD

[14 CFR Part 298]

[Economic Regs. Draft Release No. 55B]

AIR TAXI OPERATORS; OPERATIONS OVER CERTIFICATED HELICOPTER ROUTES

SUPPLEMENTAL NOTICE OF PROPOSED RULE-MAKING

SEPTEMBER 5, 1952.

In the notice of proposed rule making on this matter published in the FEDERAL REGISTER on July 18, 1952 (17 F. R. 6596), it was stated that the Board would consider all relevant matter in communications received on or before August 18, 1952. On August 15, 1952, the Board, at the request of interested parties, issued Draft Release No. 55-A, extending the date by which comments must be filed with the Board from August 18, 1952 to September 12, 1952. This was published on August 19, 1952 (17 F. R. 7549). The Board has again been requested by an interested party to extend the return date for comments further to September 30, 1952. Because of the importance of the proposed rule, the Board desires to give all interested persons sufficient time in which to consider the subject matter thoroughly, so that the Board will have the benefit of complete comments on the proposed rule.

Accordingly, the second sentence of the next to the last paragraph of the aforementioned notice is amended to read as follows: "All relevant matter in communications received on or before September 30, 1952, will be considered by the Board before taking final action on the proposed rule."

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply sec. 416, 52 Stat. 1004; 49 U. S. C. 496)

By the Civil Aeronautics Board.

[SEAL] M. C. MULLIGAN, *Secretary.*

[F. R. Doc. 52-9934; Filed, Sept. 10, 1952; 8:54 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

Bureau of Customs

[414.21]

SPENT BONE BLACK

TARIFF CLASSIFICATION

SEPTEMBER 5, 1952.

The Bureau, by letter to the collector of customs, Philadelphia, Pennsylvania, dated Sept. 5, 1952, ruled that spent bone black, not suitable for use as bone black, is classifiable under paragraph 1555, Tariff Act of 1930, as a waste, not specially provided for, and dutiable at the modified rate of 4 percent ad valorem and not entitled to free entry under paragraph 1685.

This ruling will be effective as to such or similar merchandise entered for consumption or withdrawn from warehouse for consumption after 30 days after the date of publication of the abstract of this decision in a forthcoming issue of the weekly Treasury Decisions.

[SEAL] FRANK DOW, *Commissioner of Customs.*

[F. R. Doc. 52-9932; Filed, Sept. 10, 1952; 8:53 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

ELISE SCHMIDT VON JOHNSON

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property and Location

Mrs. Elise Schmidt von Johnson, also known as Mrs. Elise von Johnson and Mrs. Elise Ujffy Schmidt von Johnson, c/o the First National Bank of Galveston, 2127 Strand, Galveston, Tex.; presently residing at Englschalkingerstrasse 9, Munich, Germany; Claim No. 44622; $12,817.42 in the Treasury of the United States; certificate No. G-2765 for 31.88 shares of capital stock of the Guaranty Building & Loan Co., Galveston, Tex., presently in the custody of the Office of Alien Property, 346 Broadway, New York, N. Y.; one oil painting approximately 4' 1" by 4' 11" depicting a medieval scene signed "1874 Ch. Lebenkenhofer" presently in cus-

tody of the Manhattan Storage & Warehouse Co., New York, N. Y.

Executed at Washington, D. C., September 5, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-9936; Filed, Sept. 10, 1952; 8:54 a. m.]

SIMON VUKAS

NOTICE OF INTENTION TO RETURN VESTED PROPERTY

Pursuant to section 32 (f) of the Trading With the Enemy Act, as amended, notice is hereby given of intention to return, on or after 30 days from the date of the publication hereof, the following property, subject to any increase or decrease resulting from the administration thereof prior to return, and after adequate provision for taxes and conservatory expenses:

Claimant, Claim No., Property and Location

Simon Vukas, 865 First Avenue, New York, N. Y.; Claim No. 58549; Vesting Order No. 12324; $6,125.82 in the Treasury of the United States.

Executed at Washington, D. C., September 5, 1952.

For the Attorney General.

[SEAL] ROWLAND F. KIRKS,
Assistant Attorney General,
Director, Office of Alien Property.

[F. R. Doc. 52-9937; Filed, Sept. 10, 1952; 8:54 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

ALASKA

TRANSFER OF JURISDICTION OF INTEREST

SEPTEMBER 5, 1952.

By virtue of the authority contained in section 7 of the Public Works Act of August 24, 1949 (63 Stat. 629; 48 U. S. C. 486e), and pursuant to section 2.56 of Delegation Order No. 427, of August 16, 1950 (15 F. R. 5641), it is ordered as follows:

Jurisdiction of interest in and to the following described lands, is hereby transferred to the Office of Territories, Department of the Interior:

T. 8 S., R. 14 W., Seward Meridian;
Sec. 32, S½S½NE¼NE¼, N½SE¼NE¼, N½S½SE¼NE¼.
Sec. 33, W½SW¼NW¼ (unsurveyed).

Any subsequent conveyance which may be made of the lands to a public body under authority of the act of August 24, 1949, *supra*, the instrument of conveyance shall contain a provision reserving a right-of-way for ditches and canals constructed under authority of the United States, and reserving also to the United States (1) all fissionable source materials in the land, together with the right of the United States to enter upon the land and prospect for, mine and remove such materials in accordance with the act of August 1, 1946 (60 Stat. 755; 43 U. S. C. 1801), (2) all oil and gas and other mineral deposits in the lands together with the rights of the United States, its agents, representatives, lessees or permittees, to prospect for, mine and remove the same under such regulations as the Secretary may prescribe, (3) a right-of-way for the construction of railroads, telegraph and telephone lines in accordance with the act of March 12, 1914 (38 Stat. 305; 48 U. S. C. 305), (4) a right-of-way for roads, highways, tramways, trails, bridges, and appurtenant structures constructed by or under authority of the United States or of any State created out of the Territory of Alaska, in accordance with the act of July 24, 1947 (61 Stat. 418; 48 U. S. C. 321d), and (5) such other reservations, covenants, terms, and conditions as may be deemed proper by the Office of Territories, as well as those which may be required for the protection of the Department of the Interior or any agency thereof.

LOWELL M. PUCKETT,
Regional Administrator.

[F. R. Doc. 52-9905; Filed, Sept. 10, 1952; 8:48 a. m.]

DEPARTMENT OF AGRICULTURE

Office of the Secretary

SOUTH DAKOTA

SALE OF MINERAL INTERESTS; REVISED AREA DESIGNATIONS

Schedule A, entitled Fair Market Value Areas, and Schedule B, entitled One Dollar Areas, accompanying the Secretary's Order dated June 26, 1951 (16 F. R. 6318), are amended as follows:

In Schedule A, under South Dakota, in alphabetical order, add the counties "Bon Homme" and "Brown."

In Schedule B, under South Dakota, delete the counties "Bon Homme" and "Brown."

(Sec. 3, Pub. Law 760, 81st Cong.)

Done at Washington, D. C., this 8th day of September, 1952.

[SEAL] CHARLES F. BRANNAN,
Secretary of Agriculture.

[F. R. Doc. 52-9969; Filed, Sept. 10, 1952; 8:58 a. m.]

DEPARTMENT OF LABOR

Wage and Hour Division

LEARNER EMPLOYMENT CERTIFICATES

ISSUANCE TO VARIOUS INDUSTRIES

Notice is hereby given that pursuant to section 14 of the Fair Labor Standards Act of 1938, as amended, (52 Stat. 1068, as amended; 29 U. S. C. and Sup. 214) and Part 522 of the regulations issued thereunder (29 CFR Part 522), special certificates authorizing the employment of learners at hourly wage rates lower than the minimum wage rates applicable under section 6 of the act have been issued to the firms listed below. The employment of learners under these certificates is limited to the terms and conditions therein contained and is subject to the provisions of Part 522. The effective and expiration dates, occupations, wage rates, number or proportion of learners, and learning period for certificates issued under the general learner regulations (§§ 522.1 to 522.14) are as indicated below; conditions provided in certificates issued under special industry regulations are as established in these regulations.

Single Pants, Shirts and Allied Garments, Women's Apparel, Sportswear and Other Odd Outerwear, Rainwear, Robes and Leather and Sheep-Lined Garments Divisions of the Apparel Industry learner regulations (29 CFR 522.160 to 522.166, as amended December 31, 1951; 16 F. R. 12043, and June 2, 1952; 17 F. R. 3818).

The Fairchild Co., Alpharetta, Ga., effective 8-28-52 to 2-27-53; 70 learners for expansion purposes (dress trousers).

Lackawanna Pants Manufacturing Co., Cedar Avenue and Brook Street, Scranton, Pa., effective 9-8-52 to 9-7-53; 10 percent of the productive factory force (trousers).

Lemont Pants Co., 310 Illinois Street, Lemont, Ill., effective 9-1-52 to 8-31-53; four learners (men's and boys' clothing—trousers and slacks).

Lyons Textile Mill, Inc., Greensboro, Ga., effective 9-2-52 to 3-1-53; 10 learners for expansion purposes (work clothes).

Summit Station Manufacturing Co., 194 South Main Street, Pine Grove, Pa., effective 9-2-52 to 9-1-53; 10 learners (dresses and blouses).

I. Taitel & Son, 12 South Prettyman Street, Knox, Ind., effective 8-28-52 to 3-11-53; 10 percent of the productive factory force or 10 learners, whichever is greater (men's work pants) (replacement certificate).

Tuskegee Industries, Mitchell Village, Ala., effective 9-1-52 to 2-28-53; 23 learners for expansion purposes (shirts and pajamas).

Cigar Industry Learner Regulations (29 CFR 522.201 to 522.211, as amended January 25, 1950; 15 F. R. 400).

General Cigar Co., Inc., 1301-11 Seventh Avenue, Huntington, W. Va., effective 8-26-52 to 2-25-53; 50 learners for expansion purposes; cigar machine operator, 320 hours; packer (cigars retailing for more than 6 cents each), 320 hours; hand stripper, 160 hours; machine stripper, 160 hours; each 60 cents per hour.

Glove Industry learner regulations (29 CFR 522.220 to 522.231, as amended October 26, 1950; 15 F. R. 6888).

Dinberg Glove Corp., 215 Gilbert Street, Ogdensburg, N. Y., effective 9-4-52 to 9-3-53; five learners (lined leather gloves).

Hosiery Industry learner regulations (29 CFR 522.40 to 522.51, as revised November 19, 1951; 16 F. R. 10733).

American Throwing Co., Inc., 335 East Solomon Street, Griffin, Ga., effective 9-2-52 to 5-1-53; 15 learners for expansion purposes.

Beloit Hosiery Co., South Beloit, Ill., effective 8-29-52 to 8-28-53; five learners.

Durand Hosiery Mills, 607 North Market Street, Chattanooga, Tenn., effective 8-29-52 to 8-28-53; five learners.

Shoe Industry learner regulations (29 CFR 522.250 to 522.260, as amended March 17, 1952; 17 F. R. 1500).

Maisak-Handler Shoe Co., Inc., Senath, Mo., effective 9-4-52 to 3-3-53; 15 learners for expansion purposes.

Regulations applicable to the employment of learners (29 CFR 522.1 to 522.14).

J. H. Grady Manufacturing Co., Licking, Mo., effective 8-29-52 to 2-28-53; 35 learners for expansion purposes; hand and machine sewers, baseball makers and moulders only; 480 hours; 65 cents per hour for the first 240 hours and 70 cents per hour for the remaining 240 hours (athletic equipment).

Oregon City Woolen Mills, Third and Main Streets, Oregon City, Oreg., effective 8-28-52 to 8-27-53; four learners; machine operating (except cutting), pressers, handsewers; each 480 hours; 65 cents per hour for the first 240 hours and 70 cents per hour for the remaining 240 hours (men's and boys' clothing).

Isadore Settlow Co., 126 Shove Street, Fall River, Mass., effective 8-29-52 to 1-3-53; 30 learners for expansion purposes; machine operators (except cutters), handsewers, pressers; 480 hours each; 60 cents an hour for the first 240 hours and 65 cents per hour for the remaining 240 hours (men's and boys' clothing).

The following special learner certificates were issued to the school-operated industries listed below:

Broadview Academy, 9330 West Cermick Road, La Grange, Ill., effective 9-1-52 to 8-31-53; woodwork shop—assembler (furniture), upholsterer, woodworking machine operator, furniture finisher helper and related skilled and semi-skilled occupations; 50 learners; 250 hours at 55 cents per hour, 250 hours at 60 cents per hour, 250 hours at 70 cents per hour.

Lodi Academy, 1215 South Garfield Street, Lodi, Calif., effective 9-1-52 to 8-31-53; print shop—compositor, pressman, and related skilled and semi-skilled occupations; three learners; 350 hours at 55 cents per hour, 325 hours at 60 cents per hour, 325 hours at 70 cents per hour, unless higher standards are established by State law.

Ozark Academy, Gentry, Ark., effective 9-1-52 to 8-31-53; Venetian blind shop—rail cutter, machine operator, spray painter, slat, cord and tape cutter, installer and related skilled and semi-skilled occupations; three learners; 200 hours at 55 cents per hour, 150 hours at 60 cents per hour, 150 hours at 70 cents per hour; Broom shop—winder, stitcher, sorter, painter and related skilled and semi-skilled occupations; 12 learners; 150 hours at 55 cents per hour, 125 hours at 60 cents per hour, 125 hours at 70 cents per hour.

Each certificate has been issued upon the employer's representation that employment of learners at subminimum rates is necessary in order to prevent curtailment of opportunities for employment, and that experienced workers for the learner occupations are not available. The certificates may be cancelled in the manner provided in the regulations and as indicated in the certificates. Any person aggrieved by the issuance of any of these certificates may seek a review or reconsideration thereof within fifteen days after publication of this notice in the FEDERAL REGISTER pursuant to the provisions of Part 522.

Signed at Washington, D. C., this 3d day of September 1952.

MILTON BROOKE,
Authorized Representative of the Administrator.

[F. R. Doc. 52-9906; Filed, Sept. 10, 1952; 8:48 a. m.]

CIVIL AERONAUTICS BOARD

[Docket No. SA-263]

ACCIDENT OCCURRING AT INDIANAPOLIS, IND.

NOTICE OF HEARING

In the matter of investigation of accident involving aircraft of United States Registry N 8765A, which occurred at Indianapolis, Indiana, on August 21, 1952.

Notice is hereby given, pursuant to the Civil Aeronautics Act of 1938, as amended, particularly section 702 of said act, in the above-entitled proceeding that hearing is hereby assigned to be held on Wednesday, September 17, 1952, at 9:00 a. m. (local time) in the Claypool Hotel, Indianapolis, Indiana.

Dated at Washington, D. C., September 2, 1952.

[SEAL] EVERETT S. BOSWORTH,
Presiding Officer.

[F. R. Doc. 52-9935; Filed, Sept. 10, 1952; 8:54 a. m.]

DEFENSE MATERIALS PROCUREMENT AGENCY

[Delegation No. 10, Amdt. 1]

REGIONAL DIRECTOR OF REGION 3, LONDON, ENGLAND

DELEGATION OF AUTHORITY TO PERFORM CERTAIN STAFF AND OPERATING FUNCTIONS

Pursuant to the authority vested in me as Defense Materials Procurement Administrator, Delegation No. 10, dated April 15, 1952 (17 F. R. 3426), is hereby amended as follows:

1. Section 3a is revised, effective immediately, to read as follows:

a. To make purchases and contracts in behalf of the General Services Administration for materials, supplies, and nonpersonal services in connection with the Strategic and Critical Materials Stock Piling Act and special purchase programs for foreign aid and assistance.

2. Section 5 is amended, effective April 15, 1952, by adding a new paragraph, as follows:

f. To grant cost-of-living and living quarters allowances and to authorize the payment of foreign post differentials to (1) eligible employees of Region 3 (including employees in District Offices) who occupy positions in the General Schedule of the Classification Act of 1949, as amended, and (2) to eligible employees of the General Services Administration who are assigned to Region 3. This authority shall be exercised in accordance with Department of State "Standardized Government Civilian Allowance Regulations (Foreign Areas)" and "Standardized Government Post Differential Regulations (Foreign Areas)," as well as applicable DMPA and GSA regulations. This authority may be redelegated by the Regional Director, but may not be further redelegated.

Dated: September 5, 1952.

JESS LARSON,
Defense Materials Procurement Administrator.

[F. R. Doc. 52-9963; Filed, Sept. 10, 1952; 8:56 a. m.]

FEDERAL POWER COMMISSION

[Docket Nos. G-1308, G-1676]

SOUTHERN NATURAL GAS CO.

NOTICE OF FINDINGS AND ORDER

SEPTEMBER 5, 1952.

Notice is hereby given that on September 4, 1952, the Federal Power Commission issued its order entered September 3, 1952, amending prior order (15 F. R. 3296) and issuing certificate of public convenience and necessity in the above-entitled matter.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 52-9908; Filed, Sept. 10, 1952; 8:49 a. m.]

[Docket Nos. G-1813, G-1937, G-2023]

INDIANA GAS & WATER CO., INC., ET AL.

ORDER CONSOLIDATING PROCEEDINGS AND FIXING DATE FOR HEARING

SEPTEMBER 4, 1952.

In the matters of Indiana Gas & Water Company, Inc., Docket No. G-1813; Panhandle Eastern Pipe Line Company, Docket No. G-1937; Indiana Gas & Water Company, Inc. v. Panhandle Eastern Pipe Line Company, Docket No. G-2023.

By its order of June 3, 1952, the Commission consolidated for hearing and disposition the proceedings in Docket Nos. G-1813 and G-1937 and set said proceedings for hearing commencing August 11, 1952. Following a motion for postponement of hearing filed by Commission staff counsel on August 6, 1952, the Secretary, on August 7, 1952, issued a notice of continuance of hearing until September 15, 1952.

On August 4, 1952, Indiana Gas & Water Company, Inc. filed a complaint against Panhandle Eastern Pipe Line Company, Docket No. G-2023, in which it claimed that unlawful discrimination would result unless Panhandle were required to purchase and operate at its own expense the facilities for which a certificate of public convenience and necessity is applied for at Docket No. G-1813. The complaint also requests that the proceeding thereon be consolidated with those at Docket Nos. G-1813 and G-1937. Panhandle Eastern Pipe Line Company's answer to the complaint, filed August 28, 1952, denies any such connection of Docket No. G-2023 with Docket Nos. G-1813 and G-1937 as would permit consolidation and requests that the complaint be dismissed.

It appears that the complaint, Docket No. G-2023, involves kindred questions

with Docket Nos. G–1813 and G–1937 and should appropriately be heard with the proceedings at these dockets. It further appears that the issues to be considered in Docket No. G–2023 are not so novel to those in Docket No. G–1813 and G–1937 as to require further postponement of the date of hearing in the latter dockets in order to permit the running of the usual period of notice of hearing in Docket No. G–2023.

The Commission finds:

(1) Good cause exists to consolidate the proceedings on the above applications for the purpose of hearing.

(2) Good cause exists and it is reasonable to waive the notice provisions of § 1.19 (b) of the Commission's general rules and regulations to the extent that hearings in Docket No. G–2023 may commence on September 15, 1952, as has been ordered in Docket Nos. G–1813 and G–1937 by the Commission's order of June 3, 1952.

The Commission orders:

(A) The proceedings upon the applications of Indiana Gas & Water Company, Inc. at Docket No. G–1813, of Panhandle Eastern Pipe Line Company at Docket No. G–1937, and the complaint of Indiana Gas & Water Company, Inc. against Panhandle Eastern Pipe Line Company at Docket No. G–2023 be and the same are hereby consolidated for purpose of hearing.

(B) Pursuant to the authority contained in and subject to the jurisdiction conferred upon the Federal Power Commission by sections 7 and 15 of the Natural Gas Act and the Commission's rules of practice and procedure, a hearing be held commencing September 15, 1952, at 10:00 a. m., e. d. s. t., in the Hearing Room of the Federal Power Commission, 1800 Pennsylvania Avenue NW., Washington, D. C., concerning the matters involved and the issues presented by such applications and complaint.

(C) Interested State Commissions may participate as provided by §§ 1.8 and 1.37 (f) (18 CFR 1.8 and 1.37 (f)) of the said rules of practice and procedure.

Date of issuance: September 5, 1952.

By the Commission.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9907; Filed, Sept. 10, 1952; 8:48 a. m.]

[Docket No. G–1910]

ALLENTOWN-BETHLEHEM GAS CO. ET AL.

NOTICE OF FINDINGS AND ORDER

SEPTEMBER 5, 1952.

In the matters of Allentown-Bethlehem Gas Company, Consumers Gas Company, the Harrisburg Gas Company, Lancaster County Gas Company, the United Gas Improvement Company, Docket No. G–1910.

Notice is hereby given that on September 4, 1952, the Federal Power Commission issued its order entered September 3, 1952, in the above-entitled matters, permitting abandonment of facilities of Allentown-Bethlehem Gas Company, Consumers Gas Company, the Harrisburg Gas Company and Lancaster County Gas Company, and issuing a certificate of public convenience and necessity to the United Gas Improvement Company, Docket No. G–1910, to acquire and operate said abandoned facilities.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9909; Filed, Sept. 10, 1952; 8:49 a. m.]

[Docket No. G–1953]

MICHIGAN-WISCONSIN PIPE LINE CO.

NOTICE OF FINDINGS AND ORDER

SEPTEMBER 5, 1952.

Notice is hereby given that on September 4, 1952, the Federal Power Commission issued its order entered September 3, 1952, issuing certificate of public convenience and necessity in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9910; Filed, Sept. 10, 1952; 8:49 a. m.]

[Docket No. G–1987]

CITIES SERVICE GAS CO.

NOTICE OF FINDINGS AND ORDER

SEPTEMBER 5, 1952.

Notice is hereby given that on September 4, 1952, the Federal Power Commission issued its order entered September 3, 1952, authorizing and approving abandonment of facilities in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9911; Filed, Sept. 10, 1952; 8:49 a. m.]

[Docket No. G–2030]

TOWN OF COLFAX, LA.

NOTICE OF APPLICATION

SEPTEMBER 5, 1952.

Take notice that the Town of Colfax, Louisiana (Applicant), a municipal corporation of the State of Louisiana, address Colfax, Louisiana, filed on August 14, 1952, a petition for amendment of a certificate of public convenience and necessity issued to Trunkline Gas Company and for an order directing Trunkline Gas Company to supply and sell natural gas to the Applicant pursuant to section 7 of the Natural Gas Act.

Applicant proposes to construct a distribution system within its corporate limits and a transmission line from the main line of Trunkline Gas Company to its distribution system. Through said facilities Applicant proposes to transport and distribute a maximum of 400 Mcf of natural gas per day.

Applicant has been authorized by its electorate to issue, sell, and deliver $270,000 in bonds to finance the project.

Protests or petitions to intervene may be filed with the Federal Power Commission, Washington 25, D. C., in accordance with the rules of practice and procedure (18 CFR 1.8 or 1.10) on or before the 24th day of September 1952. The application is on file with the Commission for public inspection.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9916; Filed, Sept. 10, 1952; 8:50 a. m.]

[Docket No. ID–1146]

HAROLD TURNER

NOTICE OF ORDER AUTHORIZING APPLICANT TO HOLD CERTAIN POSITIONS

SEPTEMBER 5, 1952.

Notice is hereby given that on September 3, 1952, the Federal Power Commission issued its order entered August 28, 1952, authorizing applicant to hold certain positions pursuant to section 305 (b) of the Federal Power Act in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9912; Filed, Sept. 10, 1952; 8:50 a. m.]

[Project No. 1144]

ELIZABETH H. GRAFF ET AL.

NOTICE OF ORDER DISMISSING INCOMPLETE APPLICATION FOR AMENDMENT OF LICENSE (MAJOR)

SEPTEMBER 5, 1952.

In the matter of Elizabeth H. Graff, John H. Graff, and Elizabeth Graff Knight, Project No. 1144.

Notice is hereby given that on September 4, 1952, the Federal Power Commission issued its order entered August 28, 1952, dismissing incomplete application for amendment of license (Major) and accepting surrender of license in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9913; Filed, Sept. 10, 1952; 8:50 a. m.]

[Project No. 1927]

CALIFORNIA OREGON POWER CO.

NOTICE OF ORDER APPROVING EXHIBITS AND ADJUSTING ANNUAL CHARGES

SEPTEMBER 5, 1952.

Notice is hereby given that on June 16, 1952, the Federal Power Commission issued its order entered June 10, 1952, approving exhibits and adjusting annual charges in the above-entitled matter.

[SEAL] LEON M. FUQUAY, *Secretary.*

[F. R. Doc. 52-9914; Filed, Sept. 10, 1952; 8:50 a. m.]

[Project No. 2019]

PACIFIC GAS AND ELECTRIC CO.

NOTICE OF APPLICATION FOR AMENDMENT OF LICENSE

SEPTEMBER 4, 1952.

Public notice is hereby given that Pacific Gas and Electric Company, of San Francisco, California, has made application for amendment of its license for Project No. 2019, known as the Utica project, to authorize the construction, operation, and maintenance of a new Murphys power plant and appurtenant facilities to replace the old plant on Angels Creek, Calaveras County, California. No public or lands of the United States would be affected by the proposed amendment.

Any protest against the approval of this application or request for any action thereon, with the reason for such protest or request, and the name and address of the party or parties so protesting or requesting, should be submitted on or before October 24, 1952, to the Federal Power Commission at Washington 25, D. C.

[SEAL] LEON M. FUQUAY,
Secretary.

[F. R. Doc. 52-9915; Filed, Sept. 10, 1952; 8:50 a. m.]

GENERAL SERVICES ADMINISTRATION

SECRETARY OF THE INTERIOR

DELEGATION OF AUTHORITY TO NEGOTIATE CERTAIN CONTRACTS WITH EDUCATIONAL INSTITUTIONS

1. Pursuant to the authority vested in me by the Federal Property and Administrative Services Act of 1949, 63 Stat. 377, as amended, herein called the act, authority is hereby delegated to the Secretary of the Interior to negotiate, without advertising, pursuant to section 302 (c) (5) of the act, contracts for services to be rendered by any university, college or other educational institution, in connection with authorized programs and activities of the Department of the Interior.

2. This authority shall be exercised in accordance with applicable limitations in the act, and in accordance with applicable policies, procedures and controls prescribed by the General Services Administration.

3. The Secretary of the Interior is hereby authorized to redelegate the authority contained herein to any officer, official, or employee of the Department of the Interior.

4. This delegation of authority shall be effective as of the date hereof.

Dated: September 5, 1952.

JESS LARSON,
Administrator.

[F. R. Doc. 52-9964; Filed, Sept. 10, 1952; 8:56 a. m.]

ECONOMIC STABILIZATION AGENCY

Office of Price Stabilization

[Region III, Redelegation of Authority No. 43]

DIRECTORS OF THE DISTRICT OFFICES, REGION III, PHILADELPHIA, PA.

REDELEGATION OF AUTHORITY TO MAKE AREA ADJUSTMENTS UNDER SECTION 11 (d) OF CPR 17

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, No. III, pursuant to Delegation of Authority No. 72 (17 F. R. 7357), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to each of the District Directors of the Office of Price Stabilization in Region III:

(a) To request information in accordance with OPS Public Form 151 of tank wagon sellers of fuel oil for the purpose of adjusting ceiling prices under section 11 (d) of CPR 17;

(b) To issue area adjustments by special order under the provisions of section 11 (d) of CPR 17;

(c) To disapprove area adjustments requested under section 11 (d) of CPR 17.

This redelegation of authority shall take effect as of August 29, 1952.

JOSEPH J. MCBRYAN,
Director of Regional Office No. III.

SEPTEMBER 8, 1952.

[F. R. Doc. No. 52-9938; Filed, Sept. 8, 1952; 4:43 p. m.]

[Region V, Redelegation of Authority No. 19, Amdt. 1]

DIRECTORS OF THE DISTRICT OFFICES, REGION V, ATLANTA, GA.

AMENDMENT OF REDELEGATION OF AUTHORITY TO TAKE CERTAIN ACTION UNDER DR 1, REVISION 1

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region V, Atlanta, Georgia, pursuant to Delegation of Authority 11, Revision 1, as amended (17 F. R. 2145; 17 F. R. 7195) this amendment of Redelegation of Authority No. 19 is hereby issued.

Authority is hereby redelegated to the Directors of the Columbia, South Carolina; Jackson, Mississippi; Jacksonville, Florida; Montgomery, Alabama and Nashville, Tennessee, District Offices of Price Stabilization in addition to authority heretofore redelegated by the Delegation of Authority No. 19 to act in accordance with a new paragraph (g) being added to read as follows:

(g) To grant relief pursuant to section 19 (c) of Distribution Regulation 1, Revision 1, in the form of permission to a registered Class 2 or Class 2A slaughterer to have swine slaughtered for him temporarily by a Class 1 slaughterer, where and for so long as epidemic conditions make such relief necessary. This paragraph is effective for the duration of the epidemic of vesicular exanthema in existence on August 1, 1952.

This Amendment 1 to Redelegation of Authority No. 19 shall be effective as of August 5, 1952.

CHARLES B. CLEMENT,
Acting Regional Director of Regional Office V.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9939; Filed, Sept. 8, 1952; 4:43 p. m.]

[Region V, Redelegation of Authority No. 23, Revision 2]

DIRECTORS OF THE DISTRICT OFFICES, REGION V, ATLANTA, GA.

REDELEGATION OF AUTHORITY TO ACT UNDER GOR 24

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region V, Atlanta, Georgia, pursuant to Delegation of Authority 50 (17 F. R. 674), this second revised redelegation of authority is hereby issued.

Authority is hereby redelegated to the Directors of the Columbia, South Carolina; Jackson, Mississippi; Jacksonville, Florida; Montgomery, Alabama and Nashville, Tennessee, District Offices of the Office of Price Stabilization to act as follows:

1. To issue adopting orders as authorized by General Overriding Regulation 24;

2. To grant, deny or revoke the reclassification provided for under section 7 of General Overriding Regulation 24.

If the area in Region V for which it is deemed appropriate to fix community dollars-and-cents ceiling prices lies within the jurisdiction of more than one regional or district office of the Office of Price Stabilization, the office for the area in which the majority of the sellers to be covered by the order is located shall be the office to issue an order fixing community dollars-and-cents ceiling prices for all sellers in that area.

This second revised redelegation of authority shall take effect as of September 1, 1952.

CHARLES B. CLEMENT,
Acting Regional Director of Regional Office V.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9940; Filed, Sept. 8, 1952; 4:43 p. m.]

[Region V, Redelegation of Authority No. 44]

DIRECTORS OF THE DISTRICT OFFICES, REGION V, ATLANTA, GA.

REDELEGATION OF AUTHORITY TO MAKE AREA ADJUSTMENTS UNDER SECTION 11 (d) CPR 17

By virtue of the authority vested in me as Director of the Regional Office of

Price Stabilization, Region V, Atlanta, Georgia, pursuant to Delegation of Authority No. 72 (17 F. R. 7357), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the Columbia, South Carolina; Jackson, Mississippi; Jacksonville, Florida; Montgomery, Alabama, and Nashville, Tennessee, District Offices of Price Stabilization to act as follows:

(a) To request information in accordance with Office of Price Stabilization Public Form 151 of tank wagon sellers of fuel oil for the purpose of adjusting ceiling prices under section 11 (d) of Ceiling Price Regulation 17;

(b) To issue area adjustments by special order under the provisions of section 11 (d) of Ceiling Price Regulation 17;

(c) To disapprove area adjustments requested under section 11 (d) of Ceiling Price Regulation 17.

This redelegation of authority shall take effect as of August 28, 1952.

CHARLES B. CLEMENT,
Acting Director of Regional Office V.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9941; Filed, Sept. 8, 1952; 4:43 p. m.]

[Region V, Redelegation of Authority No. 45]

DIRECTORS OF THE DISTRICT OFFICES, REGION V, ATLANTA, GA.

REDELEGATION OF AUTHORITY TO PROCESS REPORTS OF PROPOSED PRICE DETERMINING METHODS UNDER SECTIONS 6 AND 8 OF CPR 83, REVISION 1

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region V, Atlanta, Georgia, pursuant to Delegation of Authority 73 (17 F. R. 7757), this redelegation of authority is hereby issued.

1. Authority is hereby redelegated to the Directors of the Columbia, South Carolina; Jackson, Mississippi; Jacksonville, Florida; Montgomery, Alabama; and Nashville, Tennessee, District Offices of Price Stabilization to act as follows:

(a) To approve, pursuant to sections 6 and 8 of Ceiling Price Regulation 83, Revision 1, a price determining method for sales by seller under Ceiling Price Regulation 83, Revision 1, disapprove such a proposed price determining method, modify such a proposed price determining method, or request further information concerning such a price determining method.

This redelegation of authority shall take effect as of August 28, 1952.

CHARLES B. CLEMENT,
Acting Regional Director.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9942; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region IX, Redelegation of Authority No. 9, Amdt. 1]

DIRECTORS OF THE DISTRICT OFFICES, REGION IX, KANSAS CITY, MO.

REDELEGATION OF AUTHORITY TO MAKE ADJUSTMENTS UNDER SR 39, REVISION 1 TO GCPR

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region IX, pursuant to the provisions of Delegation of Authority No. 25, Amendment 1, dated August 1, 1952 (17 F. R. 7098), this Amendment 1 to Redelegation of Authority No. 9 (16 F. R. 12239), is hereby issued.

Redelegation of Authority No. 9 (16 F. R. 12339) is amended to read as follows:

Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IX:

(a) To deny applications for adjustments of ceiling rates or charges made in accordance with the provisions of Supplementary Regulation 39, Revision 1, to the General Ceiling Price Regulation relating to interstate and intrastate operations;

(b) To make adjustments of ceiling rates or charges in accordance with the provisions of Supplementary Regulation 39, Revision 1, to the General Ceiling Price Regulation relating to interstate and intrastate operations.

This Amendment 1 to Redelegation of Authority No. 9 shall take effect as of August 27, 1952.

THOMAS C. SWANSON,
Acting Regional Director, Region IX.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9943; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region IX, Redelegation of Authority No. 30, Amdt. 1]

DIRECTORS OF THE DISTRICT OFFICES, REGION IX, KANSAS CITY, MO.

REDELEGATION OF AUTHORITY TO ACT DURING EPIDEMIC CONDITIONS UNDER DR 1, REVISION 1

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region IX, pursuant to the provisions of Delegation of Authority No. 11, Revision 1, Amendment 1, dated August 5, 1952 (17 F. R. 7195), this Amendment 1 to Redelegation of Authority No. 30 (17 F. R. 2947), is hereby issued.

Redelegation of Authority No. 30 is amended by adding a new section 1 (g) to read as follows:

(g) To grant relief, pursuant to section 19 (c) of Distribution Regulation 1, Revision 1, in the form of permission to a registered Class 2 or Class 2A slaughterer to have swine slaughtered for him temporarily by a Class 1 slaughterer, where and for so long as epidemic conditions make such relief necessary. This paragraph is effective for the duration of the epidemic of vesicular exanthema in existence on August 1, 1952.

This Amendment 1 to Redelegation of Authority No. 30 shall take effect as of August 27, 1952.

THOMAS C. SWANSON,
Acting Regional Director, Region IX.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9944; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region IX, Redelegation of Authority No. 34, Revision 1]

DIRECTORS OF THE DISTRICT OFFICES, REGION IX, KANSAS CITY, MO.

REDELEGATION OF AUTHORITY TO ACT UNDER CPR 134

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region IX, pursuant to the provisions of Delegation of Authority No. 61, Revision 1, dated July 14, 1952 (17 F. R. 6424), this Revision 1 of Redelegation of Authority No. 34 (17 F. R. 4546), is hereby issued.

Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IX, to act under sections 4 (a) (6), 6 (c), 6 (d), 7, 9 (b) (3), 10, 14 (f), 16 (b), and 21 of Ceiling Price Regulation 134.

This Revision 1 of Redelegation of Authority No. 34 shall take effect as of August 27, 1952.

THOMAS C. SWANSON,
Acting Regional Director, Region IX.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9945; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region IX, Redelegation of Authority No. 42]

DIRECTORS OF THE DISTRICT OFFICES, REGION IX, KANSAS CITY, MO.

REDELEGATION OF AUTHORITY TO ACT UNDER SR 65 TO GCPR

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region IX, pursuant to the provisions of Delegation of Authority No. 71 dated July 31, 1952 (17 F. R. 7063), this redelegation of authority is hereby issued.

Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IX, to act under section 3 (f) of Supplementary Regulation 65 to the General Ceiling Price Regulation. All actions in respect to section 3 (f) of Supplementary Regulation 65 to the General Ceiling Price Regulation, taken by District Offices previous to this authority, are hereby confirmed and validated.

This redelegation of authority shall take effect as of August 27, 1952.

THOMAS C. SWANSON,
Acting Regional Director, Region IX.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9946; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region IX, Redelegation of Authority No. 43]

DIRECTORS OF THE DISTRICT OFFICES, REGION IX, KANSAS CITY, MO.

REDELEGATION OF AUTHORITY TO MAKE AREA ADJUSTMENTS UNDER SECTION 11 (d) OF CPR 17

By virtue of the authority vested in me as Director of the Regional Office of Price Stabilization, Region IX, pursuant to the provisions of Delegation of Authority No. 72, dated August 8, 1952 (17 F. R. 7357), this redelegation of authority is hereby issued.

Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region IX:

(a) To request information in accordance with Office of Price Stabilization Public Form 151 of tank wagon sellers of fuel oil for the purpose of adjusting ceiling prices under section 11 (d) of Ceiling Price Regulation 17, and

(b) To issue area adjustments by special order under the provisions of section 11 (d) of Ceiling Price Regulation 17, and

(c) To disapprove area adjustments requested under section 11 (d) of Ceiling Price Regulation 17.

This redelegation of authority shall take effect as of August 27, 1952.

THOMAS C. SWANSON,
Acting Regional Director, Region IX.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9947; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region X, Redelegation of Authority No. 42]

DIRECTORS OF THE DISTRICT OFFICES, REGION X, DALLAS, TEX.

REDELEGATION OF AUTHORITY TO PROCESS REPORTS OF PROPOSED PRICE DETERMINING METHODS UNDER SECTIONS 6 AND 8 OF CPR 83, REVISION 1

By virtue of the authority vested in the Director of the Regional Office of Price Stabilization No. X, Dallas, Texas, pursuant to Delegation of Authority 73 (17 F. R. 7757), this Region X Redelegation of Authority No. 42 is hereby issued.

1. *Authority to act under sections 6 and 8 of CPR 83, Revision 1.* Authority is hereby redelegated to the Directors of the District Offices, Office of Price Stabilization, Region X, to approve, pursuant to sections 6 and 8 of CPR 83, Revision 1, a price determining method for sales by a seller under CPR 83, Revision 1, disapprove such a proposed price determining method, modify such a proposed price determining method or request further information concerning such a price determining method.

This redelegation of authority shall take effect on September 9, 1952.

B. FRANK WHITE,
Acting Director of Regional Office No. X.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9948; Filed, Sept. 8, 1952; 4:44 p. m.]

[Region XII, Redelegation of Authority No. 54]

DIRECTORS OF THE DISTRICT OFFICES, REGION XII, SAN FRANCISCO, CALIF.

REDELEGATION OF AUTHORITY TO PROCESS REPORTS OF PROPOSED PRICE DETERMINING METHODS UNDER SECTIONS 6 AND 8 OF CPR 83, REVISION 1

By virtue of the authority vested in the Director of the Regional Office of Price Stabilization No. XII, pursuant to Delegation of Authority 73 (17 F. R. 7757), this redelegation of authority is hereby issued.

1. *Authority to act under sections 6 and 8 of CPR 83, Revision 1.* Authority is hereby redelegated to the Directors of the District Offices of the Office of Price Stabilization, Region XII, to approve, pursuant to sections 6 and 8 of CPR 83, Revision 1, a price determining method for sales by a seller under CPR 83, Revision 1, disapprove such a proposed price determining method, modify such a proposed price determining method, or request further information concerning such a price determining method.

This Redelegation of Authority shall take effect as of September 7, 1952.

EARL I. CLOUD,
Acting Director of Regional Office No. XII.

SEPTEMBER 8, 1952.

[F. R. Doc. 52-9949; Filed, Sept. 8, 1952; 4:44 p. m.]

[Delegation of Authority 35, Amdt. 1]

DIRECTORS OF THE REGIONAL OFFICES

DELEGATION OF AUTHORITY TO ACT ON APPLICATIONS PERTAINING TO CERTAIN ITEMS OF SAUSAGE UNDER SECTIONS 9 AND 10 OF GCPR, SR 34, REVISED

By virtue of the authority vested in the Director of Price Stabilization, pursuant to the Defense Production Act of 1950, as amended (64 Stat. 798, 803; 65 Stat. 131; 66 Stat. 296), Executive Order 10161 (15 F. R. 6105), and Economic Stabilization Agency General Order No. 2, as amended (16 F. R. 738, 11626), the Amendment 1 to Delegation of Authority No. 35 (16 F. R. 12299) is hereby issued.

1. *Authority to act under section 10 of Revised Supplementary Regulation to the GCPR.* Authority is hereby delegated to the Directors of the Regional Office of the Office of Price Stabilization to accept filings under section 10 of Revised Supplementary Regulation 34 to the General Ceiling Price Regulation.

2. *Authority to act under section 9 of Revised Supplementary Regulation to the GCPR.* Authority is hereby delegated to the Directors of the Regional Offices, Office of Price Stabilization to request further information, pursuant to section 9 of Revised Supplementary Regulation 34, to the General Ceiling Price Regulation, with respect to any ceiling price granted, reported or proposed pursuant to Supplementary Regulation 34 to the General Ceiling Price Regulation, issued June 12, 1951, or to Revised Supplementary Regulation 34 to the General Ceiling Price Regulation, except as to an adjusted ceiling price requested under section 5 of Revised Supplementary Regulation 34 to the General Ceiling Price Regulation, and at any time to disapprove or revise, pursuant to section 9 of Revised Supplementary Regulation 34 to the General Ceiling Price Regulation, any such granted, reported, or proposed ceiling price in order to bring it in line with the general level of prices prevailing under Revised Supplementary Regulation 34.

3. *Redelegation of authority.* The authority hereby delegated is to be exercised concurrently with the National Office and may be redelegated to the Directors of the District Office, Office of Price Stabilization.

This amendment shall take effect on September 15, 1952.

JOSEPH H. FREEHILL,
Acting Director of Price Stabilization.

SEPTEMBER 10, 1952.

[F. R. Doc. 52-10002; Filed, Sept. 10, 1952; 11:01 a. m.]